FILED UNDER THE ELECTRONIC BRIEFING RULES

APPELLATE COURT

OF THE

STATE OF CONNECTICUT

AC 47559, 47560, 47561

JOHN GIROLAMETTI, ET AL.

v.

CITY OF DANBURY ET AL.

BRIEF OF AMICUS CURIAE CONNECTICUT CONFERENCE OF MUNICIPALITIES

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CERTIFICATE OF INTERESTED ENTITIES OR INDIVIDUALS

Pursuant to Practice Book § 67-7A(b), Connecticut Defense Lawyers Association (CDLA), an entity as defined by Practice Book § 60-4, herby certifies that:

1. CCM does not have any parent entities.

2. There are no entities or individuals owning or controlling an interest of 10 percent or more of CCM.

3. CCM does not know of any direct or indirect ownership, controlling or legal interest for CCM that counsel of record thinks could reasonably require a judge to disqualify himself or herself under Rule 2.11 of the Code of Judicial Conduct.

By: s/ *Tadhg Dooley*
Tadhg Dooley

TABLE OF CONTENTS

CERTIFICATE OF INTERESTED ENTITIES OR INDIVIDUALS 2

I. INTEREST OF AMICUS CURIAE 6

II. ARGUMENT 6

A. The trial court's application of § 52-557n(b) conflicts with the statute's text, context, and purpose. 6

1. The trial court's application of § 52-557n defeats the statute's purpose of codifying governmental immunity with limited exceptions. 7

2. The trial court's application collapses the distinction between negligence and recklessness. 8

3. The trial court's application effects a silent repeal of §§ 7-465(a) and 7-101a. 9

B. Permitting direct municipal liability for recklessness in licensing and inspection would have devastating and perverse consequences for Connecticut municipalities. 10

C. The Court should clarify that municipalities may only be found directly liable for recklessness in licensing and inspection if there is a municipal policy or practice of ignoring a particular risk of harm. 13

III. CONCLUSION 14

CERTIFICATIONS 15

TABLE OF AUTHORITIES

Page(s)

Cases

Amaral Bros., Inc. v. Dep't of Lab.,
325 Conn. 72, 155 A.3d 1255 (2017).....10

Di Teresi v. Stamford Health Sys., Inc.,
142 Conn. App. 72, 63 A.3d 1011 (2013).....8

Elliott v. City of Waterbury,
245 Conn. 385, 715 A.2d 27 (1998).....10

Jiminez v. American Steak House, LLC,
No. CV-10-6001715-S, 2010 WL 5030129 (Sup. Ct.
Nov. 15, 2010) 13

M & L Cons., Inc. v. Town of Darien,
No. FSTCV136022914S, 2015 WL 671691 (Conn.
Super. Ct. Feb. 2, 2015).....8

Maselli v. Reg'l Sch. Dist. No. 10,
198 Conn. App. 643, 235 A.3d 599 (2020).....8

Northrup v. Witkowski,
175 Conn. App. 223, 167 A.3d (2017).....10

Pera v. Young Men's Christian Association of Greenwich,
No. CV-11-6008362-S, 2011 WL 3891042 (Conn. Sup.
Ct. July 29, 2011).....13

Right v. Breen,
277 Conn. 364, 890 A.2d 1287 (2006).....8

Williams v. Housing Auth. of the City of Bridgeport,
327 Conn. 338, 174 A.3d 137 (2017).....7, 14

Statutes

Conn. Gen. Stat. § 7-101. .....9, 10

Conn. Gen. Stat. § 7-465(a).....9, 10

Conn. Gen. Stat. § 10-235(a).....10

Conn. Gen. Stat. § 19a-181a.....10

Conn. Gen. Stat. § 52-557n.....*passim*

Other Authorities

Summary of Statutes, https://www.mwl-law.com/wp-content/uploads/2013/03/MUNICIPAL-COUNTY-LOCAL-GOVERNMENTAL-LIABILITY-CHART-00212510.pdf.....9

With leave of the Appellate Court, Connecticut Conference of Municipalities (CCM) respectfully submits this brief of amicus curiae in support of appellant, the City of Danbury.[1]

I. INTEREST OF AMICUS CURIAE

CCM is the largest nonpartisan organization of municipal leaders in Connecticut. Its membership represents nearly all of the 169 cities and towns in the State. One of its many purposes is to provide advocacy for member municipalities on issues of general concern, including through the submission of amicus briefs. CCM and its members have an interest in this appeal because the trial court's decision broadens the waiver of derivative sovereign immunity contained in General Statutes § 52-557n, with potentially devastating consequences for Connecticut's cities and towns.

II. ARGUMENT

A. The trial court's application of § 52-557n(b) conflicts with the statute's text, context, and purpose.

The trial court interpreted General Statutes §§ 52-557n(b)(7) and (8) to allow direct suit against both a municipalities and their employees for reckless conduct in connection with the issuance of permits and making of property inspections. This reading undercuts Connecticut's statutory tort scheme and conflicts with other statutory provisions.

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[1] No counsel for any party wrote this brief in whole or part and no party, or counsel to a party, contributed the cost of preparing or submitting this brief.

1. The trial court's application of § 52-557n defeats the statute's purpose of codifying governmental immunity with limited exceptions.

Section 557n was meant to codify governmental immunity with only certain limited exceptions. Thus, while § 557n(a)(1) generally permits municipal liability for *negligence*, § 557n(a)(2) specifically provides that municipalities "*shall not* be liable for damages" caused by "[a]cts or omissions of any employee, officer or agent which constitute criminal conduct, actual malice or wilful [sic] misconduct," or for "negligent acts or omissions which require the exercise of judgment or discretion." *Id.* Thus, § 52-557n(a) generally *precludes* municipalities from being held liable for their employees' discretionary conduct or for willful or malicious misconduct. *Id.*

Consistent with this background presumption, § 52-557n(b) specifically identifies ten categories of discretionary governmental activity for which municipalities and their employees generally *cannot* be held liable—all of which pertain to municipal responsibility over land use and development. *See id.* § 52-557n(b). These include §§ 557n(b)(7) and (8), which address the issuance of permits and other a authorizations and the inspection of property. Within these categories, municipalities and municipal employees "shall not be liable for damages to person or property" unless their actions with respect to permitting or inspection "constitutes a reckless disregard for health or safety under all the relevant circumstances." *Id.* §§ 52-557n(b)(7), (8).

To be sure, the Supreme Court has recognized that a municipality can be held liable under § 52-557n(b)(8) when the failure to carry out inspections is the result of a municipal "policy or pattern," *Williams v. Housing Auth. of the City of Bridgeport*, 327 Conn. 338, 358 (2017). But here, the trial court permitted Danbury to be held liable for the alleged failure its employees to properly review permit applications

and conduct building inspections where was no allegation or evidence of a municipal policy or pattern. This constitutes a broad and untenable expansion of municipal liability, which could leave cash-strapped towns liable for catastrophic damages awards.

2. The trial court's application collapses the distinction between negligence and recklessness.

Under Connecticut law, reckless conduct is "highly unreasonable conduct, involving an extreme departure from ordinary care, in a situation where a high degree of danger is apparent." *Maselli v. Reg'l Sch. Dist. No. 10*, 198 Conn. App. 643, 663 (2020). Negligent conduct, by contrast, requires only a showing that a duty was breached in a manner that caused injury. *Right v. Breen*, 277 Conn. 364, 377 (2006). There is thus a "wide difference between negligence and a reckless disregard of the rights or safety of others." *Di Teresi v. Stamford Health Sys., Inc.*, 142 Conn. App. 72, 91 (2013). Indeed, the distinction between the two is "a difference in kind rather than a mere continuum of severity." *M & L Cons., Inc. v. Town of Darien*, 2015 WL 671691, at *11 (Conn. Super. Ct. Feb. 2, 2015).

But here, the jury found recklessness on facts which do not come close to showing that Danbury and its building inspectors engaged in highly unreasonable conduct that constituted an extreme departure from ordinary care.

The facts put before the jury indicated that Plaintiffs designated Michael Horton Associates Inc. as the "design professional, in responsible charge" who was responsible for interfacing with the City building department. DA192. As part of the review process, City building officials reviewed a statement of special inspections, as required by the building code and examined a set of. DA193-201. City building officials also examined a set of drawings pertaining to the

structural engineering of the building (provided by Horton), as well as drawings of the pre-engineered part of the building provided by VP Buildings. The evidence also showed that Edward Schullery had numerous interactions with architect Russell Larabee to resolve various issues. The City conducted over 100 inspections during the construction phase of the project. DA216-25.

Even assuming that city employees made mistakes in this process, it is difficult to comprehend how this pattern of conduct could be deemed *reckless* as opposed to merely negligent. If affirmed, the judgment in this case would eliminate this important distinction and effectively permit municipalities and municipal employees to be held liable for *negligent* permitting and inspection, making Connecticut an unfortunate outlier among other states, the vast majority of which do not permit liability for negligent licensing or inspection. *See* PA27

3. The trial court's application effects a silent repeal of §§ 7-465(a) and 7-101a.

The trial court's interpretation of § 52-557n(a) squarely conflicts with the general policy laid out in Conn. Gen. Stat. § 7-465(a)—a policy which is echoed throughout Connecticut's municipal-liability statutes. Section 7-465(a) governs a municipality's "[a]ssumption of liability for damage caused by an employee," and provides that municipalities will assume liability for the actions of their employees only if that conduct is not "wilful or wanton." *Id*. This limitation is echoed in § 7-101a, which requires municipalities to indemnify employees for liability arising out of "alleged negligence," but not for "malicious, wanton or wilful act[s]."

It is well established under Connecticut law that "willful or wanton" conduct is the equivalent of reckless conduct. *See Elliott v. City of Waterbury*, 245 Conn. 385, 415 (1998) (willful, wanton, and reckless conduct are "indistinguishable"); *see also Northrup v.*

Witkowski, 175 Conn. App. 223, 248, (2017) ("Wanton misconduct is reckless misconduct"). Indeed, many statutes use the terms interchangeably in the context of indemnification. *See, e.g.*, Conn. Gen. Stat. § 10-235(a) (requiring boards of education to indemnify employees except for "wanton, reckless, or malicious" conduct); *id.* § 19a-181a (requiring state to indemnify "any person certified as an emergency medical-services instructor," provided the instructor's actions were not "wanton, reckless or malicious").

Thus, the consistent theme throughout the General Statutes is that government entities are *not* liable for the "wanton," "willful," or "reckless" conduct of their employees. But the trial court's application of §§ 52-557n(b)(7) and (8) would effectively repeal §§ 7-465(a) and 7-101a in the crucial context of building permitting an inspection—an area that could expose municipalities to potentially crippling liability. This would violate "the rule disfavoring the implied repeal of a statute by the subsequent enactment of another statute." *Amaral Bros., Inc. v. Dep't of Lab.*, 325 Conn. 72, 85 (2017). Accordingly this Court should adopt a harmonizing interpretation that prevents a statutory conflict.

B. Permitting direct municipal liability for recklessness in licensing and inspection would have devastating and perverse consequences for Connecticut municipalities.

The trial court's ruling, if allowed to stand, would impose onerous requirements on municipal building departments that are virtually impossible to meet. By law, city officials are entitled to rely on the analyses provided to them by structural engineers. DA63-66. That is just what Danbury did here. It also inspected the construction site more than 100 times. If Danbury can nevertheless be held liable for recklessness under the facts of this case, then all municipalities will

face a constant risk of potentially catastrophic liability any time a plaintiff can trace a construction defect back to the inspection or permitting process.

Connecticut municipalities are in no position to guard against this potential risk. They are required by law to enforce the State's building and construction codes, but have limited ability to raise sufficient revenue to provide for the type of oversight needed to escape liability under the reasoning implicit in the trial court's judgment. If the conduct in this case qualifies as reckless, then municipalities would have to exponentially increase their hiring and spending on permitting and inspection, effectively becoming insurers of private construction projects. Or, more likely, they will have to dramatically reduce their issuance of building permits in order to shield themselves from potentially crippling liability. This would stunt economic growth and exacerbate Connecticut's already severe housing shortage.

The scale of the liability municipalities will now have to backstop is staggering. Connecticut municipalities issued over 5,000 building permits in 2023, many of which concern projects valued in the six or seven figures. CCM conservatively estimates that the total value of these construction projects is well into the nine figures. According to its Building Department, in 2024 Danbury alone issued commercial building permits with an aggregate construction value in the mid-eight figures, with one project alone valued at over $30,000,000. The trial court's judgment, if affirmed, would suggest that municipalities could be responsible for these costs—as well as other potential economic and consequential damages—if **plaintiffs** are able to identify mistakes in the permitting or inspection processes.

Connecticut's cities and towns cannot afford to pay these types of judgments or to make the sorts of investments in hiring that would be necessary to avoid this exposure. Municipalities have no income tax

power and their ability to raise revenue through property taxes is severely limited by state law, which exempts nonprofits—including churches, universities and hospitals—from taxation. The trial court's judgment thus leaves Connecticut municipalities in an impossible situation—they must vastly increase their expenditures on building permitting and inspection in order to ferret out the possible failures of private contractors, while being severely limited in the means by which they can raise revenue.

At a minimum, the judgment in this case will encourage plaintiffs' lawyers to include municipalities as defendants in any significant construction case. This case provides a perfect template. Other than inspection in accordance with its long-established licensing regime, the city of Danbury had no involvement with the construction project at issue here. The parties, responsible for any alleged design and construction defects are private entities. Yet Danbury, despite its minimal involvement, has been left holding the bag on millions of dollars in liability. Allowing this verdict to stand would send a clear message to the plaintiffs' bar that the relevant municipality should always be added as a defendant in any case involving alleged construction defects.

Plaintiffs will now be on notice that every municipality in Connecticut can be forced to act as an insurer of last resort for any construction project requiring municipal approval and inspection. This will open a flood of litigation against municipalities. In fact, it may even *increase* the overall number of lawsuits filed, for plaintiffs will now be incentivized to file suit even when the private parties actually responsible for the loss are unable to pay. Previously, filing such a suit would not have been economically viable, but if a municipality can be forced to foot the bill that calculation would be turned on its head. This verdict would thus have the perverse effect of shielding private

construction contractors for their shortcomings and shifting the cost to municipalities and Connecticut taxpayers.

C. The Court should clarify that municipalities may only be found directly liable for recklessness in licensing and inspection if there is a municipal policy or practice of ignoring a particular risk of harm.

These consequences can be avoided by imposing direct liability on municipalities only if there is a *Monell*-style policy that results in systematic reckless conduct on the part of the city. Such an interpretation is particularly warranted here, as § 52-557n(b)(7) and (8) both also impose liability for *failure* to act. It would be extraordinarily harsh to put municipalities on the hook for a single instance of an individual employee's failure to act.

That is especially so because Connecticut law does not uniformly recognize a cause of action for reckless failure to act. *See, e.g.*, *Pera v. Young Men's Christian Association of Greenwich*, 2011 WL 3891042 (Conn. Sup. Ct. July 29, 2011) (granting motion to strike the plaintiff's recklessness count, holding that "the defendant's alleged passivity ... due to the desire to avoid costs" associated with the removal of ice and snow from a parking lot was not sufficient to support a recklessness action); *Jiminez v. American Steak House, LLC*, 2010 WL 5030129 (Sup. Ct. Nov. 15, 2010) (striking recklessness count where defendant consciously chose not to inspect premises, make repairs, or warn customers of dangerous condition created by detached piece of dining booth). Liability should thus only be imposed when a municipality's actions or failure to act rise to the level of a policy that was *adopted* recklessly.

Such an interpretation is consistent with the Supreme Court's decision in *Williams v. Housing Authority of the City of Bridgeport*, 327

Conn. 338 (2017). When assessing whether a municipality could be held directly liable under (b)(8), the Supreme Court instructed that "whether the failure to inspect was an isolated event or part of a policy or pattern" was a relevant consideration. *Id.* at 359. The Supreme Court further emphasized that "whether other municipalities or jurisdictions *routinely* neglect to carry out inspections of the type at issue" was another important factor. *Id.* at 359–60 (emphasis added). These are both relevant factors regarding whether a municipality has a defective *policy* that could subject it to liability.

This Court should therefore clarify that if §§ 52-557n(b)(7) and (8) impose direct liability on municipalities, they do so only when there is a citywide policy that meets the recklessness threshold.

III. CONCLUSION

The judgment below should be reversed. To the extent municipalities can ever be *directly* liable for recklessness, it should only be when there is evidence of a municipal policy or custom of ignoring a particular substantial risk of harm.

February 7, 2025

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CERTIFICATIONS

The undersigned hereby certifies, pursuant to Connecticut Rule of Appellate Procedure § 67-2A, that:

(1) A copy of the brief and party appendix has been sent electronically to each counsel of record in compliance with § 62-7, except for counsel of record exempt from electronic filing pursuant to § 60-8, to whom a paper copy of the brief and party appendix has been sent;

(2) The brief and party appendix being filed with the appellate clerk are true and correct copies of the brief and party appendix that were submitted electronically pursuant to subsection (f) of this section;

(3) The brief and party appendix have been redacted or do not contain any names or other personal identifying information that is prohibited from disclosure by rule, statute, court order, or case law, unless the brief is filed pursuant to § 79a-6;

(4) The e-brief contains 2,399 words;

(5) The brief complies with all provisions of this rule; and

(6) No deviations from this rule were requested/approved.

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PARTY APPENDIX OF AMICUS CURIAE CONNECTICUT CONFERENCE OF MUNICIPALITIES

TABLE OF CONTENTS

Statutes:

1. Conn. Gen. Stat. § 7-101. 19

2. Conn. Gen. Stat. § 7-465(a) 20

3. Conn. Gen. Stat. § 10-235(a) 22

4. Conn. Gen. Stat. § 19a-181a 24

5. Conn. Gen. Stat. § 52-557n 25

6. Summary of Statutes, https://www.mwl-law.com/wp-content/uploads/2013/03/MUNICIPAL-COUNTY-LOCAL-GOVERNMENTAL-LIABILITY-CHART-00212510.pdf 27

Unreported Cases:

7. *Jiminez v. American Steak House, LLC*, No. CV-10-6001715-S, 2010 WL 5030129 (Sup. Ct. Nov. 15, 2010) 72

8. *M & L Cons., Inc. v. Town of Darien*, No. FSTCV136022914S, 2015 WL 671691 (Conn. Super. Ct. Feb. 2, 2015).....74

9. *Pera v. Young Men's Christian Association of Greenwich*, No. CV-11-6008362-S, 2011 WL 3891042 (Conn. Sup. Ct. July 29, 2011) 85

Connecticut General Statutes Annotated
Title 7. Municipalities
Chapter 97. Municipalities: General Provisions

C.G.S.A. § 7-101

§ 7-101. Town seal

Currentness

Each town shall provide itself with a seal with the name of the town and the state and the word “seal” inscribed thereon and may place thereon any such other suitable inscription or design as it determines. If any town changes any design or inscription upon its seal, a certificate describing such change shall be made and filed by the town clerk of such town with the Secretary of the State. The town clerk shall have the custody of such seal.

Credits
(1949 Rev., § 622.)

C. G. S. A. § 7-101, CT ST § 7-101
The statutes and Constitution are current with all enactments of the 2024 Regular Session and the 2024 June Special Session.

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C.G.S.A. § 7-465

§ 7-465. Assumption of liability for damage caused by employee of municipality or member of local emergency planning district. Joint liability of municipalities in district department of health or regional council of governments

Currentness

(a) Any town, city or borough, notwithstanding any inconsistent provision of law, general, special or local, shall pay on behalf of any employee of such municipality, except firemen covered under the provisions of section 7-308, and on behalf of any member from such municipality of a local emergency planning district, appointed pursuant to section 22a-601, all sums which such employee becomes obligated to pay by reason of the liability imposed upon such employee by law for damages awarded for infringement of any person's civil rights or for physical damages to person or property, except as set forth in this section, if the employee, at the time of the occurrence, accident, physical injury or damages complained of, was acting in the performance of his duties and within the scope of his employment, and if such occurrence, accident, physical injury or damage was not the result of any wilful or wanton act of such employee in the discharge of such duty. This section shall not apply to physical injury to a person caused by an employee to a fellow employee while both employees are engaged in the scope of their employment for such municipality if the employee suffering such injury or, in the case of his death, his dependent, has a right to benefits or compensation under chapter 568 [1] by reason of such injury. If an employee or, in the case of his death, his dependent, has a right to benefits or compensation under chapter 568 by reason of injury or death caused by the negligence or wrong of a fellow employee while both employees are engaged in the scope of their employment for such municipality, such employee or, in the case of his death, his dependent, shall have no cause of action against such fellow employee to recover damages for such injury or death unless such wrong was wilful and malicious or the action is based on the fellow employee's negligence in the operation of a motor vehicle, as defined in section 14-1. This section shall not apply to libel or slander proceedings brought against any such employee and, in such cases, there is no assumption of liability by any town, city or borough. Any employee of such municipality, although excused from official duty at the time, for the purposes of this section shall be deemed to be acting in the discharge of duty when engaged in the immediate and actual performance of a public duty imposed by law. Such municipality may arrange for and maintain appropriate insurance or may elect to act as a self-insurer to maintain such protection. No action for personal physical injuries or damages to real or personal property shall be maintained against such municipality and employee jointly unless such action is commenced within two years after the cause of action therefor arose and written notice of the intention to commence such action and of the time when and the place where the damages were incurred or sustained has been filed with the clerk of such municipality within six months after such cause of action has accrued. Governmental immunity shall not be a defense in any action brought under this section. In any such action the municipality and the employee may be represented by the same attorney. As used in this section, “employee” includes (1) a member of a town board of education and any teacher, including a student teacher doing practice teaching under the direction of such a teacher, or other person employed by such board, and (2) a member of the local emergency planning committee from such municipality appointed pursuant to section 22a-601. Nothing in this section shall be construed to abrogate the right of any person, board or commission which may accrue under section 10-235.

(b) Each town, city or borough which has joined with other towns, cities or boroughs to form a district department of health, pursuant to chapter 368f, [2] or a regional council of governments, pursuant to section 4-124j, shall jointly assume the liability imposed upon any officer, agent or employee of such district department of health or such regional council of governments,

acting in the performance of his duties and in the scope of his employment, under, and in the manner and in accordance with the procedures set forth in, subsection (a) of this section. Such joint assumption of liability shall be proportionately shared by the towns, cities and boroughs in such district or regional council of governments, on the same basis that the expenses of such district are shared as determined under section 19a-243.

Credits

(1957, P.A. 401, § 1; 1959, P.A. 651, § 1; 1961, P.A. 375; 1963, P.A. 97; 1965, Feb.Sp.Sess., P.A. 277; 1971, P.A. 226, § 1, eff. Oct. 1, 1971; 1973, P.A. 73-610; 1975, P.A. 75-408, § 3; 1977, P.A. 77-502, § 1; 1981, P.A. 81-229, § 2; 1982, P.A. 82-472, § 20, eff. June 14, 1982; 1985, P.A. 85-521, § 1; 1989, P.A. 89-212, § 12; 2003, P.A. 03-278, § 19, eff. July 9, 2003; 2013, P.A. 13-247, § 273, eff. Jan. 1, 2015; 2015, P.A. 15-85, § 1.)

Footnotes

1 C.G.S.A. § 31-275 et seq.

2 C.G.S.A. § 19a-400 et seq.

C. G. S. A. § 7-465, CT ST § 7-465

The statutes and Constitution are current with all enactments of the 2024 Regular Session and the 2024 June Special Session.

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Connecticut General Statutes Annotated
Title 10. Education and Culture (Refs & Annos)
Chapter 170. Boards of Education (Refs & Annos)

C.G.S.A. § 10-235

§ 10-235. Indemnification of teachers, board members, employees and certain volunteers and students in damage suits; expenses of litigation

Currentness

(a) Each board of education shall protect and save harmless any member of such board or any teacher or other employee thereof or any member of its supervisory or administrative staff, and the State Board of Education, the Board of Regents for Higher Education, the board of trustees of each state institution and each state agency which employs any teacher, and the managing board of any public school, as defined in section 10-183b, including the governing council of any charter school, shall protect and save harmless any member of such boards, or any teacher or other employee thereof or any member of its supervisory or administrative staff employed by it, from financial loss and expense, including legal fees and costs, if any, arising out of any claim, demand, suit or judgment by reason of alleged negligence or other act resulting in accidental bodily injury to or death of any person, or in accidental damage to or destruction of property, within or without the school building, or any other acts, including, but not limited to, infringement of any person's civil rights, resulting in any injury, which acts are not wanton, reckless or malicious, provided such teacher, member or employee, at the time of the acts resulting in such injury, damage or destruction, was acting in the discharge of his or her duties or within the scope of employment or under the direction of such board of education, the Board of Regents for Higher Education, board of trustees, state agency, department or managing board; provided that the provisions of this section shall not limit or otherwise affect application of section 4-165 concerning immunity from personal liability. For the purposes of this section, the terms “teacher” and “other employee” include (1) any person who is a cooperating teacher pursuant to section 10-220a, teacher mentor or reviewer, (2) any student teacher doing practice teaching under the direction of a teacher employed by a local or regional board of education or by the State Board of Education or Board of Regents for Higher Education, (3) any student enrolled in a technical education and career school who is engaged in a supervised health-related field placement program which constitutes all or part of a course of instruction for credit by a technical education and career school, provided such health-related field placement program is part of the curriculum of such technical education and career school, and provided further such course is a requirement for graduation or professional licensure or certification, (4) any volunteer approved by a board of education to carry out a duty prescribed by said board and under the direction of a certificated staff member including any person, partnership, limited liability company or corporation providing students with community-based career education, (5) any volunteer approved by a board of education to carry out the duties of a school bus safety monitor as prescribed by said board, (6) any member of the faculty or staff or any student employed by The University of Connecticut Health Center or health services, (7) any student enrolled in a constituent unit of the state system of higher education who is engaged in a supervised program of field work or clinical practice which constitutes all or part of a course of instruction for credit by a constituent unit, provided such course of instruction is part of the curriculum of a constituent unit, and provided further such course (A) is a requirement for an academic degree or professional licensure or (B) is offered by the constituent unit in partial fulfillment of its accreditation obligations, and (8) any student enrolled in a constituent unit of the state system of higher education who is acting in the capacity of a member of a student discipline committee established pursuant to section 4-188a.

(b) In addition to the protection provided under subsection (a) of this section, each local and regional board of education and each charter school shall protect and save harmless any member of such local or regional board of education or charter school governing council, or any teacher or other employee thereof or any member of its supervisory or administrative staff from

financial loss and expense, including legal fees and costs, if any, arising out of any claim, demand or suit instituted against such member, teacher or other employee by reason of alleged malicious, wanton or wilful act or ultra vires act, on the part of such member, teacher or other employee while acting in the discharge of his duties. In the event such member, teacher or other employee has a judgment entered against him for a malicious, wanton or wilful act in a court of law, such board of education or charter school shall be reimbursed by such member, teacher or other employee for expenses it incurred in providing such defense and shall not be held liable to such member, teacher or other employee for any financial loss or expense resulting from such act.

(c) Legal fees and costs incurred as a result of the retention, by a member of the State Board of Education, the Board of Regents for Higher Education or the board of trustees of any state institution or by a teacher or other employee of any of them or any member of the supervisory or administrative staff of any of them, or by a teacher employed by any other state agency, of an attorney to represent his or her interests shall be borne by said State Board of Education, Board of Regents for Higher Education, board of trustees of such state institution or such state agency employing such teacher, other employee or supervisory or administrative staff member, as the case may be, only in those cases wherein the Attorney General, in writing, has stated that the interests of said board, Board of Regents for Higher Education, board of trustees or state agency differ from the interests of such member, teacher or employee and has recommended that such member, teacher, other employee or staff member obtain the services of an attorney to represent his interests and such member, teacher or other employee is thereafter found not to have acted wantonly, recklessly or maliciously.

Credits

(1949 Rev., § 1494; 1949, Supp. § 163a; 1951, Supp. § 329b; 1955, Supp. § 951d; 1959, P.A. 521, § 1, eff. June 16, 1959; 1965, Feb.Sp.Sess., P.A. 330, § 43, eff. July 1, 1965; 1971, P.A. 344; 1972, P.A. 201, § 1, eff. May 16, 1972; 1973, P.A. 73-651; 1977, P.A. 77-573, § 24, eff. Aug. 1, 1977; 1978, P.A. 78-54; 1978, P.A. 78-65; 1978, P.A. 78-208, § 30, eff. July 1, 1978; 1978, P.A. 78-218, § 167; 1979, P.A. 79-63; 1980, P.A. 80-197, § 3; 1981, P.A. 81-450, § 2; 1982, P.A. 82-218, § 37, eff. March 1, 1983; 1984, P.A. 84-241, § 2, eff. May 24, 1984; 1988, P.A. 88-273, § 7, eff. May 6, 1988; 1990, P.A. 90-230, § 15, eff. June 8, 1990; 1990, P.A. 90-325, § 21, eff. June 6, 1990; 1993, P.A. 93-259, § 1, eff. June 28, 1993; 1995 P.A. 95-79, § 186, eff. May 31, 1995; 1996, P.A. 96-214, § 7; 2011, P.A. 11-48, § 285, eff. July 1, 2011; 2012, P.A. 12-116, § 87(a), (b), eff. July 1, 2012; 2013, P.A. 13-122, § 6, eff. June 18, 2013; 2015, P.A. 15-215, § 5, eff. June 30, 2015; 2017, P.A. 17-237, § 77, eff. July 1, 2017; 2018, P.A. 18-139, § 6, eff. June 11, 2018.)

C. G. S. A. § 10-235, CT ST § 10-235

The statutes and Constitution are current with all enactments of the 2024 Regular Session and the 2024 June Special Session.

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Connecticut General Statutes Annotated
Title 19a. Public Health and Well-Being (Refs & Annos)
Chapter 368D. Emergency Medical Services (Refs & Annos)

C.G.S.A. § 19a-181a

§ 19a-181a. Indemnification of emergency medical services instructors

Currentness

The state shall save harmless and indemnify any person certified as an emergency medical services instructor by the Department of Public Health under this chapter from financial loss and expense, including legal fees and costs, if any, arising out of any claim, demand, suit or judgment by reason of alleged negligence or other act resulting in personal injury or property damage, which acts are not wanton, reckless or malicious, provided such person at the time of the acts resulting in such injury or damage was acting in the discharge of his duties in providing emergency medical services training and instruction.

Credits

(1989, P.A. 89-278, § 2; 1993, P.A. 93-381, §§ 9, 39, eff. July 1, 1993; 1995, P.A. 95-257, §§ 12, 21, 58, eff. July 1, 1995; 2010, P.A. 10-18, § 8; 2010, P.A. 10-117, § 29.)

C. G. S. A. § 19a-181a, CT ST § 19a-181a
The statutes and Constitution are current with all enactments of the 2024 Regular Session and the 2024 June Special Session.

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Connecticut General Statutes Annotated
Title 52. Civil Actions
Chapter 925. Statutory Rights of Action and Defenses (Refs & Annos)

C.G.S.A. § 52-557n

§ 52-557n. Liability of political subdivision and its employees, officers and agents. Liability of members of local boards and commissions

Currentness

(a) (1) Except as otherwise provided by law, a political subdivision of the state shall be liable for damages to person or property caused by: (A) The negligent acts or omissions of such political subdivision or any employee, officer or agent thereof acting within the scope of his employment or official duties; (B) negligence in the performance of functions from which the political subdivision derives a special corporate profit or pecuniary benefit; and (C) acts of the political subdivision which constitute the creation or participation in the creation of a nuisance; provided, no cause of action shall be maintained for damages resulting from injury to any person or property by means of a defective road or bridge except pursuant to section 13a-149. (2) Except as otherwise provided by law, a political subdivision of the state shall not be liable for damages to person or property caused by: (A) Acts or omissions of any employee, officer or agent which constitute criminal conduct, fraud, actual malice or wilful misconduct; or (B) negligent acts or omissions which require the exercise of judgment or discretion as an official function of the authority expressly or impliedly granted by law. Notwithstanding the provisions of subparagraph (B) of this subdivision, governmental immunity shall not be a defense in a civil action for damages to person or property caused by the negligent operation of a motor vehicle owned by a political subdivision of the state. The elimination of the defense of governmental immunity as provided for in this subsection shall not be construed as limiting or expanding the rights, duties and exemptions granted to the operator of an emergency vehicle under section 14-283.

(b) Notwithstanding the provisions of subsection (a) of this section, a political subdivision of the state or any employee, officer or agent acting within the scope of his employment or official duties shall not be liable for damages to person or property resulting from: (1) The condition of natural land or unimproved property; (2) the condition of a reservoir, dam, canal, conduit, drain or similar structure when used by a person in a manner which is not reasonably foreseeable; (3) the temporary condition of a road or bridge which results from weather, if the political subdivision has not received notice and has not had a reasonable opportunity to make the condition safe; (4) the condition of an unpaved road, trail or footpath, the purpose of which is to provide access to a recreational or scenic area, if the political subdivision has not received notice and has not had a reasonable opportunity to make the condition safe; (5) the initiation of a judicial or administrative proceeding, provided that such action is not determined to have been commenced or prosecuted without probable cause or with a malicious intent to vex or trouble, as provided in section 52-568; (6) the act or omission of someone other than an employee, officer or agent of the political subdivision; (7) the issuance, denial, suspension or revocation of, or failure or refusal to issue, deny, suspend or revoke any permit, license, certificate, approval, order or similar authorization, when such authority is a discretionary function by law, unless such issuance, denial, suspension or revocation or such failure or refusal constitutes a reckless disregard for health or safety; (8) failure to make an inspection or making an inadequate or negligent inspection of any property, other than property owned or leased by or leased to such political subdivision, to determine whether the property complies with or violates any law or contains a hazard to health or safety, unless the political subdivision had notice of such a violation of law or such a hazard or unless such failure to inspect or such inadequate or negligent inspection constitutes a reckless disregard for health or safety under all the relevant circumstances; (9) failure to detect or prevent pollution of the environment, including groundwater, watercourses and wells, by individuals or entities other than the political subdivision; or (10) conditions on land sold or transferred to the political subdivision by the state when such conditions existed at the time the land was sold or transferred to the political subdivision.

(c) Any person who serves as a member of any board, commission, committee or agency of a municipality and who is not compensated for such membership on a salary or prorated equivalent basis, shall not be personally liable for damage or injury occurring on or after October 1, 1992, resulting from any act, error or omission made in the exercise of such person's policy or decision-making responsibilities on such board, commission, committee or agency if such person was acting in good faith, and within the scope of such person's official functions and duties, and was not acting in violation of any state, municipal or professional code of ethics regulating the conduct of such person, or in violation of subsection (a) of section 9-369b or subsection (b) or (c) of section 1-206. The provisions of this subsection shall not apply if such damage or injury was caused by the reckless, wilful or wanton misconduct of such person.

Credits

(1986, P.A. 86-338, § 13, eff. Oct. 1, 1986; 1992, P.A. 92-198; 1993, P.A. 93-290; 2023, P.A. 23-83, § 1, eff. June 26, 2023.)

C. G. S. A. § 52-557n, CT ST § 52-557n

The statutes and Constitution are current with all enactments of the 2024 Regular Session and the 2024 June Special Session.

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MUNICIPAL/COUNTY/LOCAL GOVERNMENTAL IMMUNITY AND TORT LIABILITY IN ALL 50 STATES

"*Governmental immunity*" concerns itself with the various legal doctrines or statutes that provide municipalities, local government entities, and political subdivisions immunity from tort-based claims, as well as exceptions from and limitations to that immunity. Generally, a state government is immune from tort suits by individuals under the doctrine of *sovereign immunity*. Local governments, municipalities (cities), counties, towns, and other political subdivisions of the state, however, are immune from tort suits by virtue of *governmental immunity.* This is because the state grants them immunity, usually in the state's Constitution. This chart deals with governmental immunity and liability of municipal, county, and local government in all 50 states. It should be noted that lawsuits against local governmental entities, their officers, and employees are frequently asserted under federal law, *e.g.,* 42 U.S.C. § 1983, or other similar statutes. This chart deals only with the separate body of law governing claims against local governments. It does not cover federal claims under the Federal Tort Claims Act (FTCA) (28 U.S.C. § 2674) or claims of negligence against state governments, the latter of which is the subject of another chart that can be found **HERE**.

The broader doctrine of *sovereign immunity* traces its common law origins to the notion that the king made the laws, and thus anything the king did was perforce legal. The doctrine was thought to pass through to several states before the founding of this country. When the Constitution was drafted in 1787, Article III raised questions about this principle by exposing states to suits from citizens of other states and foreign states. U.S. Const. Art. III, § 2 ("The judicial Power shall extend ... to Controversies ... between a State and Citizens of another State ... and between a State ... and foreign States, Citizens or Subjects"). In 1793, the U.S. Supreme Court dealt precisely with this issue in *Chisholm v. Georgia* and abolished the doctrine of sovereign immunity with respect to states. *Chisolm v. Georgia,* 2 U.S. 419 (1793) ("the Constitution warrants a suit against a State, by an individual citizen of another State"). Several years later, in response to *Chisholm*, Congress proposed, and three-fourths of the states ratified, the Eleventh Amendment, which reinstated states' sovereign immunity, at least to the extent that Article III encroached upon it. Therefore, there could be no valid suit against a government entity. By the early 1800s, this sovereign immunity was adopted by nearly every state. However, the enjoyment of sovereign immunity is limited to government bodies that are truly "sovereign," namely the U.S. federal government and each state government. This presumed immunity was based on the belief that governments would be paralyzed if they faced potential liability for all actions of their employees. Sovereign immunity today has been limited or eliminated, at least in part, in most jurisdictions by either legislative or judicial action.

The doctrine of sovereign immunity varies from state to state but is usually contained either in a statutory framework (such as a Tort Claims Act) or within judicial and case decisions. Excluded from the doctrine are cities and municipalities, which are considered to be mere creatures of the legislature, and which have no inherent power and must exercise delegated power strictly within the limitations prescribed by the state legislature. As such, by default, municipalities are liable for their actions unless shielded by state law. The constitution of a particular state may grant that state and its political subdivisions "absolute sovereign immunity" — meaning that those local government entities are shielded from suit unless the legislature explicitly creates a statutory exception waiving immunity or the municipality or local

government entity waives its immunity by contract and purchases insurance to cover any resulting liability obligations. Immunity of local government and political subdivisions is known as "governmental immunity" because it is granted by state government as opposed to common law.

State Immunity vs. Political Subdivision Immunity

Most states have two parallel systems and bodies of law for governmental tort immunity: one for the state and another for political subdivisions created by the state to help fulfil their obligations (county, city, town, school district, water districts, park districts, airport districts, etc.). A "political subdivision" is a local governmental entity that is in some ways distinct from or a subset of the state, but nevertheless exercises a "slice of state power." They include counties, cities, towns, villages, and special districts such as school districts, water districts, park districts, and airport districts. In some states, there are separate Acts covering each – as in Pennsylvania where there is a *State Sovereign Immunity Act* covering the liability of the state (referred to as the "Commonwealth" in Pennsylvania) and a *State Tort Claims Act* covering the liability of political subdivisions.

Although it varies from state to state, much of the law involving governmental immunity focuses on whether (1) the employee who caused the injury was acting within the scope of the employee's duties and (2) whether the activity in which the employee was engaged was the type of act which public policy deems worthy of granting immunity. It is almost universally agreed that a total waiver of government immunity is undesirable. However, creating standards and tests to separate those acts that should be protected from those that should create liability has been a difficult, complex, and an imperfect effort. There is a lot of blurring and conflating of concepts used to describe and categorize local government actions from state to state. However, in general, the concepts and terms used have distinct differences and you should be familiar with them.

Governmental / Discretionary Acts

For many years, local government was liable only for *proprietary* acts and not *governmental* acts. The rule attempted to distinguish between municipal activities which are inherently public in nature and those which merely supplant or parallel the workings of the private sector. The rule made a "vertical" classification of activities, in the sense that broad spheres of official concern such as education, police and fire protection, hospitals, garbage collection, maintenance of streets and sidewalks, sewage, and provision of water, electricity and transportation, are each labeled either *governmental* or *proprietary*. Once a service or action was classified as governmental, local governmental immunity applied on all levels in the provision of this *governmental* service. This simple test failed to take into account the nature of the activity. At its simplest, this distinction looked like this:

Governmental Act: Local government is not liable – had immunity.
Proprietary Act: Local government is liable – immunity waived.

Governmental functions are those activities that are "discretionary, political, legislative, or public in nature and performed for the public good on behalf of the State." *Millar v. Town of Wilson*, 23 S.E.2d 340 (N.C. 1942). They are undertakings that are commercial or chiefly for the private advantage of the compact community. Courts had a hard time applying these inexact standards to particular activities, causing irreconcilable splits of authority and confusion. For example, in North Carolina, the operation of a municipal airport has been considered a proprietary function, even though a statute declared it to be governmental. *Rhodes v. City of Asheville*, 52 S.E.2d 371 (N.C. 1949).

Proprietary functions are undertakings that are commercial or chiefly for the private advantage of the compact community. A proprietary function is one that a private entity can perform and is not uniquely for the benefit of the general public. The discretionary function defense applies to discretionary governmental functions, but not for proprietary (or ministerial) functions. There are many grey areas where states reach difference results, such as whether the design of highways is governmental or proprietary. Many states do not consider personal medical services, such as prenatal care clinics and general indigent medical care clinics, to be governmental functions and apply ordinary medical malpractice law to them, although some states do include these under governmental immunity. On the other hand, if the medical

service is related to protecting the public, rather than just helping one person, it will be considered governmental. In this regard, the treatment and testing for tuberculosis would be a governmental function.

The older *governmental* (immune) v. *proprietary* (not immune) rule looked only to the level at which the decision to undertake the activity was made. Over time, this simple distinction lost its vitality as an accurate or adequate rationale for the immunity privilege. As one court put it:

> *Perhaps the best encapsulation of our sentiments concerning the governmental-proprietary standard was articulated by Justice Lavendar of the Oklahoma Supreme Court when he stated "Judicial attempts to grapple with what has become a multi-addered medusa has resulted in confusion and uncertainty all too painfully apparent to legal scholars, and an inability on the part of the courts to evolve any definitive guidelines. Vanderpool v. State,* 672 P.2d 1153 (Okla. 1983).

Inconsistency developed with regard to which activities were which. Even the U.S. Supreme Court expressed dissatisfaction with and condemned this simple distinction. *Indian Towing Co. v. U.S.*, 350 U.S. 61 (1955). A concept of municipal immunity driven by a purpose not to jeopardize the quality and efficiency of government by exposing the exercise of discretion in the formulation of government policy to tort liability led to an evolved concept of municipal immunity under which any function (*governmental* or *proprietary*) can now come within a *discretionary* function exception to either liability or immunity.

Discretionary vs. Ministerial Acts

For many years, the broader distinction of *proprietary* vs. *governmental* was the simple but inadequate *litmus* test. Over time, however, it became infused with the narrower terminology of *ministerial* vs. *discretionary*. Rather than local government automatically being immune from suit whenever a *governmental* act was involved, state law began to borrow the *discretionary* function rule which originated with the Federal Tort Claims Act in 1946, which exempted from liability any act based on the exercise or performance (or the failure to exercise or perform) a *discretionary* function or duty, whether or not the discretion is abused. A discretionary act is a government action performed according to legal authority, established procedures or instructions from a superior, without exercising any individual judgment. It can be any act a government employee performs in a prescribed manner, without exercising any individual judgment or discretion. The repair of equipment on a school playground, although a governmental function, was not of such a nature as to pose threats to the quality and efficiency of government if tort liability attached. In this fashion, the concept of a discretionary act test found its way into the field of local governmental immunity.

In general, only discretion and judgment at the highest levels call for the imposition of *governmental* immunity for local government. Even this test, however, has a lack of an adequate and clear standard for determining what a *discretionary* function is. No state legislature has attempted to clearly define what this term means. State courts have developed three basic approaches or interpretations:

(1) Literal or semantic definition. The problem with this approach is that there is some level of discretion involved in almost every governmental act.

(2) Standard which distinguishes *"planning level functions"* from "*operational level functions*." This generally means that only basic policy decisions are immune. A policy decision (state policy of maintaining highways) may be discretionary, but subsequent *ministerial* actions undertaken to implement the policy decision (how roads will be salted or where highway signs will be placed) are considered ministerial acts for which liability may attach. Utah, Hawaii, and Alaska are examples of states which use this distinction. If an act takes place on a higher, planning level, it is discretionary and immune.

(3) Flexible approach which evaluates the particular facts in light of the purpose of the exception. Many states, often those without a statutory discretionary function rule, look past the planning/operational distinction, and instead inquire whether the decision is the kind that is delegated to a coordinate branch of government and are therefore immune. Does the act involve a basic governmental policy, program, or objective? Is the act essential to the accomplishment of that policy, program, or objective? Does it require evaluation, judgment, and expertise? Oregon and Washington are examples of this approach. There is very little difference in the effect of this approach and the second approach, and the difference is mainly one of semantics.

None of these approaches clearly defines or sets forth those activities for which a government is liable. There is no immunity from liability arising out of the negligent performance of a *proprietary* or *ministerial* act by a local governmental employee. A ministerial act is one performed under a given set of facts and in a prescribed manner in obedience to the mandate of legal authority (*e.g.,* statute, established procedure, instructions from a superior, or other legal authority) without regard to, or the exercise of, the individual judgment of the local government employee on the propriety (*i.e.,* the appropriateness) of the act being done. In other words, the local government employee is compelled by law to do the act and to do it in a particular manner. An act is usually ministerial even though the employee must use judgment to determine if a set of facts exist that make it necessary to perform the act. Examples of a ministerial act include entry of an order by a court clerk, notarizing a document, issuing a building permit, approving a real estate subdivision, and determining the existence of facts and applying them as required by law, without any discretion. Acts which would not be considered ministerial include decisions about application of a tax law, auditing an income tax return, and determining facts and applying law to those facts.

Immune "discretionary" actions include governing and supervisory decisions, such as how much priority is placed on the enforcement of ordinances and codes, the allocation of resources, the number of staff assigned to a project, the timing or placement of traffic lights, and how laws are enforced. "Proprietary" actions, on the other hand, include the method of performing government functions. For example, the negligence of a municipal employee that results in injury can expose the municipality to tort liability. The waiver of sovereign immunity in such a case only opens the door to litigation; it does not change burdens of proof or elements of a tort. In order to prevail in a tort suit, a plaintiff must still demonstrate all the necessary elements of a tort: duty, breach, causation, and damages. Under common law, the sovereign state enjoyed absolute governmental immunity while municipalities did not. Although it varies from state to state, today, municipalities are only immune for governmental functions, *i.e.,* those inherent state police powers that embody the government's fundamental legal obligation to preserve the general public health, safety, and welfare. They are generally not immune from liability for proprietary functions, *i.e.,* when acting like a private business on their own behalf and/or for the benefit of their own citizens. When injuries arose from a proprietary function, municipalities can often be held liable like a private individual for negligence.

Public Duty Doctrine

Separate and apart from the concepts of sovereign immunity and official immunity, some states adopt the public duty doctrine. The public duty doctrine states that a public employee is not civilly liable for the breach of a duty owed to the general public, rather than a particular individual. This public duty rule is based on the absence of a duty to the particular individual, as contrasted to the duty owed to the general public. This doctrine does not insulate a public employee from all liability, as he or she could still be found liable for a breach of *ministerial* duties in which an injured party had a "special, direct, and distinctive interest." See, *e.g., Southers v. City of Farmington*, 263 S.W.3d 603 (Mo. 2008). It is not an affirmative defense, but rather delineates the legal duty the defendant public employee owes the plaintiff. In effect, the applicability of the public duty doctrine negates the duty element required to prove negligence, such that there can be no cause of action for injuries sustained as the result of an alleged breach of public duty to the community as a whole. The public duty doctrine holds that a government agent cannot be civilly liable – even for breach of a ministerial duty – if that duty is owed to the general public as opposed to a particular individual.

Federal Civil Rights Liability (42 U.S.C. § 1983)

The Federal Civil Rights statute is the basis by which a state or local government employee can assert a civil rights claim. 42 U.S.C. § 1983 provides:

> *Every person who, under color of any statute, ordinance, regulation, custom, or usage, of any State or Territory or the District of Columbia, subjects, or causes to be subjected, any citizen of the United States or other person within the jurisdiction thereof to the deprivation of any rights, privileges, or immunities secured by the Constitution and laws, shall be liable to the party injured in an action at law, suit in equity, or other proper proceeding for redress.*

The most common claims brought under § 1983 are for violation of constitutional rights, including:

- First Amendment rights of freedom of religion, speech, and press;
- Fourth Amendment protections against searches and seizures;
- Fifth Amendment protection from self-incrimination;
- Eighth Amendment protection against cruel and unusual punishment; and
- Fourteenth Amendment protections against deprivations of life, liberty, or property without due process.

Under § 1983, "any citizen" can be that person if they, while acting "under color of state law," deprived the plaintiff of their constitutional rights, and the challenged conduct caused a constitutional violation. The "color of law" element is established where a public employee acts pursuant to their office or in their official capacity.

Summary

The development of the immunity standard for local government and political subdivisions has evolved from attempts to create a precise, predictable semantic definition into a flexible, if unpredictable, guideline. There is rarely an easy answer to whether a particular act on the part of local government is immune, which is why these cases are litigated so frequently. For most states, if an act constitutes "governing" (high-level policy decision for which coordinate branches of government are responsible), immunity will apply. This is most often referred to as the "*discretionary function exception*." Where along the continuum of decision-making an act falls is the stuff of lawsuits and legal advocacy. Most states have abandoned a simple formula and gone with the "planning-level function" (proprietary) acts being immune and the "operational-level function" (ministerial) acts being subject to liability in tort. This is unfortunate for the drafters of charts like this one, because most states have avoided a mechanical categorizing of government actions into "immune" or "not immune" columns. Generally, however, the terms "*proprietary*", "*ministerial*" and "*planning level*" usually go together and describe functions for which local government is liable and for which immunity has been waived. The terms "*governmental*", "*discretionary*" and "*operational level*" usually go together and describe functions for which local government is not liable and retains its immunity.

NOTE: This chart concerns itself with issues regarding governmental immunity granted to and liability of "political subdivisions" (i.e., local government entities created by the states to help fulfill their obligations, including counties, cities, towns, villages, and special districts such as school districts, water districts, park districts, and airport districts). The immunity granted to and liability of individual state governments and their employees are addressed in detail in our sister chart entitled "State Sovereign Immunity and Tort Liability In All 50 States" found HERE.

STATE	LEGAL AUTHORITY	NOTICE DEADLINES	CLAIMS/ACTIONS ALLOWED	COMMENTS/EXCEPTIONS	DAMAGE CAPS
ALABAMA	For years, municipalities and counties were immune to tort liability in the exercise of governmental (immune), as opposed to proprietary (not immune) functions. *Hilliard v. City of Huntsville*, 585 So.2d 889 (Ala. 1991). That changed in 1975. Local government entities can now be sued without regard to former governmental-proprietary distinctions. *Jackson v. City of Florence*, 320 So.2d 68 (Ala. 1975).	**Municipality** Sworn statement/claim must be filed with clerk within six (6) months, detailing manner of injury, damages, etc. Ala. Code § 11-47-23. **County** Itemized, verified claim must be filed with Commission within 12 months and must be acted on within 90 days prior to suit or is considered disallowed. Ala. Code § 11-12-8.	**Municipality** City/town liability limited to neglect of employees. Employee only liable for intentional act. Ala. Code § 11-47-190. A municipality has duty to maintain sidewalks in safe condition and is liable for negligent failure to do so, *Johnson v. City of Opelika*, 71 So.2d 793 (Ala. 1954). **County** County can be sued in any court. Ala. Code §§ 6-5-20, 11-2-1.	In 1984, Congress enacted the Local Government Antitrust Act (15 U.S.C. §§ 34-36 (1984)), which eliminates certain damage suits under the Clayton Act: treble damage claims by "persons," single damage claims by the U.S., and treble damage claims by States. Protection against such damage suits extends to local governments. Undecided whether a governmental employee can be sued in his individual capacity for actions done on behalf of his employer. *Suttles v. Roy*, 75 So.3d 90 (Ala. 2010).	$100,000 Per Person $300,000 Per Occurrence $100,000 Prop. Damage Ala. Code §§ 11-93-1 through 11-93-3. Association of County Commissions of Alabama established a self-insurance fund for local government liability insurance. Ala. Code §§ 11-30-1, *et seq*. Limits apply to municipal or county employees sued in individual capacities. *Suttles v. Roy*, 75 So.3d 90 (Ala. 2010).

STATE	LEGAL AUTHORITY	NOTICE DEADLINES	CLAIMS/ACTIONS ALLOWED	COMMENTS/EXCEPTIONS	DAMAGE CAPS
ALASKA	**Actions, Immunities, Defenses, and Duties.** **Qualified Immunity** No action can be maintained against a municipality, unless exception. Alaska Stat. § 09.65.070(a).	No Notice Requirements In *Johnson v. City of Fairbanks*, 583 P.2d 181 (Alaska 1978), the court announced notice of claims provisions in city charters (Fairbanks city charter required 120 days' notice) are impliedly prohibited because they impede implementation of statutes which seek to further a specific statewide policy with reference to the time within which suits may be filed.	Section 09.65.070 does not shield municipalities from "operational negligence." Municipality is liable for negligently performing particular operations to implement the broad policy decision (*e.g.,* operating motor vehicle or negligent damage to storm or sewer). *City of Seward v. Afognak Logging*, 31 P.3d 780 (Alaska 2001). "Planning decision" involves policy formulation (immune). "Operational decision" involves policy execution or implementation (not immune). *Regner v. N. Star Volunteer Fire Dep't, Inc.*, 323 P.3d 16 (Alaska 2014).	**Discretionary Function Official Immunity** Municipality or its employees may not be sued if claim is based on performance/failure to perform discretionary function, even if the discretion is abused. Alaska Stat. § 09.65.070(d)(2). Discretionary acts are acts "that require personal deliberation, decision, and judgment." Planning functions (immune). Operational functions (not immune). *Samaniego v. City of Kodiak*, 2 P.3d 78 (Alaska 2000). Under the Planning/Operational Test for Discretionary Function Immunity, liability is the rule, immunity is the exception.	No Damage Caps

STATE	LEGAL AUTHORITY	NOTICE DEADLINES	CLAIMS/ACTIONS ALLOWED	COMMENTS/EXCEPTIONS	DAMAGE CAPS
ARIZONA	**Actions Against Public Entities or Public Employees Act.** Public entities are granted absolute immunity for the exercise of a judicial, legislative, or discretionary function. A.R.S. § 12-820.01 (1984). "Public entity" means the state or any political subdivision of the state. A.R.S. § 12-820(7).	All actions against public entities or public employees shall be brought within one (1) year after the cause of action. A.R.S. § 12-821. Claims against the State shall be filled within 180 days after the action occurs. A.R.S. § 12-821.01. Deemed denied if no response within 60 days.	Liability determined by nature of act performed. ***Policymaking vs. Operational*** *Operational* acts concern routine, everyday matters not involving broad policy factors. *Policymaking* acts involve whether one general course of action over another.	Absolute immunity granted for (1) Judicial/Legislative functions; and (2) Administrative functions involving *government policy*. A.R.S. § 12-820.01(A) (No Easy Test). Unless there is gross negligence, qualified immunity granted for actions listed in § 12-820.02(A).	None No law shall limit the amount of damages to be recovered for causing the death or injury of any person. Ariz. Const. Art. II, § 31. No punitive damages against the State. A.R.S. § 12-820.04.
ARKANSAS	**Liability of State and Local Governments.** Legislature abolished "governmental" vs. "proprietary" distinction. Ark. Code §§ 21-9-301 through 21-9-303 (1969). **Qualified Immunity** Municipal governments and political subdivisions immune except to extent covered by liability insurance. **Legislative Immunity** *Massongill v. Cty. of Scott*, 991 S.W.2d 105 (Ark. 1999).	None	All political subdivisions must carry liability insurance on their motor vehicles. Ark. Code § 21-9-303(a). Direct action against municipal insurer allowed. *Little Rock Port Auth. v. McCain*, 752 S.W.2d 44 (Ark. 1988). Each county, municipal corporation, school district, special improvement district, or any other political subdivision is authorized to provide for hearing and settling tort claims against it. Ark. Code § 21-9-302.	Ark. Code § 21-9-301 extends immunity only for acts of negligence, but not for intentional torts. A failure to correct that negligence may be construed as intentional. *Robinson v. City of Ashdown,* 783 S.W.2d 53 (Ark. 1990). Unclear who has burden of proving liability insurance. *Helena-West Helena School Dist. v. Monday*, 204 S.W.3d 514 (Ark. 2005). No recovery for plaintiff covered under workers' compensation. *Helms v. Southern Farm Bureau Cas. Ins. Co.*, 664 S.W.2d 870 (Ark. 1984).	No Punitive Damages *Mosier v. Robinson*, 722 F. Supp. 555 (W.D. Ark. 1989). Municipal auto insurance must be at least $25,000 per person, $50,000 per occurrence, and $25,000 property damage. Ark. Code § 21-9-303. If no insurance, city is self-insurer. Ark. Code § 21-9-301.

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CALIFORNIA	**California Tort Claims Act.** Public entity liable if the act or omission would, apart from this section, have given rise to a cause of action against that employee. Cal. Gov't Code § 815.2 Numerous immunities provided. Cal. Gov't Code §§ 815 - 996.6 (1963). A public entity may sue and be sued. Cal. Gov't Code § 945. Public employee liable for injury to the same extent as a private person. Cal. Gov't Code § 815.	Personal injury/property claim within six (6) months after accrual of the cause of action. All other claims shall be presented within one (1) year. Cal. Gov't Code § 911.2. Board must respond within 45 days. Then six (6) months to file suit. "Substantial compliance" may be found even if deficiencies. See Cal. Gov't Code §§ 910 and 915 for claim filing requirements. See §§ 911.4 to 912.2 re: leave to file late claims.	A *public entity* includes city, county or political subdivision. Cal. Gov't Code § 811.2. *Public entity* is liable for injuries proximately caused by their employee's acts or omissions except when that employee is immune from liability. Cal. Gov't Code § 815.2. A *public entity* is liable for death or injury proximately caused by a negligent or wrongful act or omission in the operation of any motor vehicle by a public employee acting within the scope of his employment. Cal. Veh. Code § 17001.	A public employee is not liable for an injury resulting from his act or omission where the act or omission was the result of a discretionary act. Cal. Gov't Code § 820.2. *Public entities* not liable for injuries caused by misrepresentation. Cal. Gov't Code § 818.8. Public entities are not liable for an injury caused by adopting or failing to adopt an enactment or by failing to enforce any law. Cal. Gov't Code § 818.2.	None No punitive damages against the State. Cal. Gov't Code § 818.

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COLORADO	**Colorado Governmental Immunity Act (CGIA).** A public entity is immune from liability in all tort claims for injury except as otherwise provided. Immunity is waived under certain circumstances and exceptions to that waiver are provided. C.R.S. §§ 24-10-101 – 120 (1971).	Claims against public entity must be filed within 182 days of the injury. C.R.S. § 24-10-109(1). File with Atty General. File suit after denial or 90 days has passed. C.R.S. § 24-10-109(6). Use Statute of Limitation for that type of action. C.R.S. § 24-10-109(5).	A *public entity* includes city, county, or political subdivision. Colo. Rev. Stat. § 24-10-103. Immunity is waived for contract actions, but not torts. Colo. Rev. Stat. § 24-10-101. *Public entity* immune from tort liability. Colo. Rev. Stat. § 24-10-106. The CGIA (C.R.S. §§ 24-10-105 and 24-10-106(1)) permits negligence suits against the State's political subdivisions, including actions against Denver Water if it was negligent and such negligence arose from the "operation and maintenance" of "a public water facility." *Great Northern Ins. Co. v. Denver Water*, 2020 WL 6680360 (D. Colo. 2020).	Immunity is waived for the following: • Operation of motor vehicle, except emergency vehicle. • Dangerous condition of building. • Dangerous condition of street. • Operation/maintenance of public water facility, gas facility, sanitation facility, electrical facility, power facility, swimming facility. C.R.S. § 24-10-106.	$350,000 per person; $900,000 per occurrence, but no person may recover more than $350,000. C.R.S. § 24-10-114.

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CONNECTICUT	**Liability of Political Subdivisions.** C.G.S.A. § 52-557n. (codified qualified immunity established by common law). Connecticut in minority of states that still make distinction between *governmental* acts (qualified immunity from discretionary acts requiring judgment or discretion) and *proprietary* functions (no immunity for *ministerial* acts performed in a prescribed manner without judgment or discretion). Exceptions to qualified immunity: (1) failure to act leads to imminent harm; (2) statute provides for cause of action; and (3) intentional act.	Written notice must be filed with the clerk of such municipality within six (6) months after such cause of action has accrued. Statute of Limitation: An action against municipality must be commenced within two (2) years after the cause of action. C.G.S.A. § 7-101a(d). Claims for injuries resulting from defective highways, sidewalks, roads, or bridges must be brought within two (2) years and notice within ninety (90) days. C.G.S.A. §§ 13a-149, 13a-144. Section 13a-149 has savings clause that forgives inaccuracy in notice if no intent to mislead.	Municipalities generally are liable for damages to persons or property caused by: (1) Negligent acts by employees within the scope of their employment or official duties; (2) Negligence in operation of enterprise for "special corporate benefit or pecuniary profit" (*e.g.,* water supply, sewer, municipal parking garage, or golf course); and (3) Creation or participation in the creation of a nuisance. C.G.S.A. § 52-557n(a)(1). However, this liability is significantly limited by several exceptions. Suits can be brought against state or municipality for defective or poorly maintained roads and bridges. C.G.S.A. § 13a-149. For additional liability statutes, see C.G.S.A. §§ 13a-144 to 13a-153e.	No liability for acts which require the exercise of judgment or discretion as an official function of authority granted by law. C.G.S.A. § 52-557n(a)(2). Other statutory exceptions covering particular activities or conditions are set forth in C.G.S.A. § 52-557n(b). No immunity when performing following *governmental* functions: (1) maintenance of a park system; (2) construction of storm water sewers (a governmental function because it is a duty imposed by the state on municipalities to maintain highways within its limits); (3) use of municipal property as a public park; and (4) traditional governmental functions such as the operation of jails, public libraries, and city garbage services.	None

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DELAWARE	**Delaware County and Municipal Tort Claims Act.** 10 Del. Code § 4013.	Any municipality may enact a notice requirement by ordinance provided it is no longer than one (1) year. 10 Del. Code § 4013. Must give notice of actions against City of Wilmington within one (1) year of date cause of action accrued. 10 Del. Code § 8124.	Counties, municipalities, and political subdivisions retain their governmental immunity with three statutory exceptions. Depends on whether acts are discretionary or ministerial. Discretionary acts are subject to immunity; ministerial acts can be subject to liability under one of the three exceptions. The distinction is always one of degree. *Sussex County v. Morris*, 610 A.2d 1354 (Del. 1992).	No immunity when performing *governmental* function: (1) Ownership, maintenance, or use of motor vehicle; (2) Liability for the construction, operation, or maintenance of any public building; and (3) Liability for a discharge of toxic substances. 10 Del. Code § 4012.	$300,000 per occurrence. If municipality purchases liability insurance in excess of $300,000, then that is the limit. 10 Del. Code § 4013.

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DISTRICT OF COLUMBIA	**Claims Against District.** The Mayor of D.C. is empowered to settle, in his discretion, claims against D.C. D.C. Code § 2-401 through § 2-416 (1929).	Notice of claim to the Mayor of the D.C. within six (6) months. Must include approximate time, place, cause and circumstances of the injury or damage. Police report is sufficient notice. D.C. Code § 12-309.	Mayor can settle claims and suits in his discretion when: (1) Arises out of ownership, maintenance, or use of motor vehicle (gross negligence if emergency vehicle); or (2) Liability for the construction, operation, or maintenance of any public building; or (3) Liability for a discharge of toxic substances. D.C. Code § 2-412. District may be liable for negligence in the performance of a proprietary function such as maintenance of a sewer system. *D.C. v. Billingsley*, 667 A.2d 837 (D.C. 1995).	Sovereign immunity for discretionary acts. No sovereign immunity for ministerial acts. *Powell v. District of Columbia,* 602 A.2d 1123 (D.C. 1992). The test for discretionary function is whether it poses a threat to the quality and efficiency of government if liability is imposed. *Shifrin v. Wilson*, 412 F. Supp. 1282 (D. D.C. 1976). Pothole accidents, fallen trees, damage caused by D.C. government, its property or its employees.	None

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FLORIDA	**Florida's Sovereign Immunity Statute.** Government entities (including counties and municipalities) liable for damages resulting from negligent acts of public employees in the scope of their employment, if a private person would be liable under similar circumstances. F.S.A. § 768.28(1) (1973).	Notice of claim must be given within three (3) years (two (2) years for wrongful death and six (6) months after settlement for contribution claims). F.S.A. § 768.28(14). File suit after denial or after six (6) months. F.S.A. § 768.28(6)(d). Statute of Limitations: Suit must be filed within four (4) years after claim accrues. F.S.A. § 768.28(14).	Four categories of public duty doctrine acts: (1) Legislative, permitting, licensing: *Immune.* (2) Law enforcement. *Immune.* (3) Capital improvement/ property control: *Liability of private person.* (4) Professional, educational, and general services: *Duty of care.* F.S.A. § 768.28.	Two Exceptions To Immunity: **A. Discretionary Government Act.** (1) Does act involve governmental policy, program, or objective? (2) Is act essential to accomplish that policy, program, or objective? (3) Does act require exercise of policy evaluation, judgment, and expertise? (4) Does the government agency possess the legal authority and duty to do the activity? If these questions can be answered "yes", the government act is "discretionary." **B. Public Duty Doctrine.** See CLAIMS/ACTIONS ALLOWED Column.	$200,000 per person. $300,000 per occurrence. Limit may be increased if municipality has liability limits in excess of this. Judgment in excess of statutory limits recoverable only if specially authorized by legislature. F.S.A. § 768.28(5).

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GEORGIA	**Liability of Municipal Corporations For Acts or Omissions.** O.C.G.A. §§ 36-33-1 to 36-33-6 In absence of liability insurance, municipality (city, town, or village) is immune from liability in all tort claims for injury except as otherwise provided.	Notice of Claim must be presented within six (6) months to governing authority of municipality (12 months for county). Action on the notice of claim must be taken by the municipality within 30 days. The running of the statute of limitations is suspended during the time that the demand for payment is pending before such authorities without action on their part. O.C.G.A. § 36-33-5. Jurisdiction is in state or superior court where local government entity resides. O.C.G.A. § 36-92-4.	(1) Immunity for *governmental* acts (decision to erect traffic sign, construction and maintenance of sewer system, operation of police and fire). (2) Immunity for *discretionary* acts unless if malice intent (act not required by statute to perform, decision not to inspect sidewalk, police pursuit). O.C.G.A. § 36-33-2. (3) Liability for *ministerial* acts (corporate gain or profit, electric power supply, buses, park, maintaining streets negligence in the execution of plans or specifications, nuisance). O.C.G.A. § 36-33-1.	Municipality waives immunity by the purchase of liability insurance. O.C.G.A. § 36-33-1. *Owens v. City of Greenville*, 722 S.E.2d 755 (Ga. 2012); O.C.G.A. §§ 33-24-51, 36-92-2, and 36-33-1. Immunity waived for operation of motor vehicles to the greater of policy limits or statutory limits. O.C.G.A. §§ 33-24-51 and 36-92-1.	**Motor Vehicles.** $500,000 Per Person $700,000 Per Occurrence $50,000 Property Damage O.C.G.A. § 36-92-2. No Punitive Damages O.C.G.A. § 36-92-4.
HAWAII	Claims against cities and counties not governed by Hawaii State Tort Liability Act. Local municipalities have no sovereign immunity to waive. *Kahale v. City and County of Honolulu*, 90 P.3d 233 (Haw. 2004).	Notice of Claim within two (2) years. Haw. Stat. § 46-72.	City and County subject to the state's tort laws in the same manner as any other private tortfeasor. *Kaczmarczyk v. City and County of Honolulu,* 656 P.2d 89 (Haw. 1982).	No public entity or public employee shall be liable for injury or damage sustained when using a public skateboard park, unless injury or damage caused by a condition resulting from failure to maintain or repair the skateboard park. Haw. Stat. § 46-72.5.	None

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IDAHO	**Idaho Tort Claims Act.** Every "governmental entity" (including "political subdivisions" such as counties, cities, municipal corporations, school districts, etc.) is liable for its employees' negligent acts within the scope of employment to the same extent a private person would be. Idaho Code § 6-903 (1976).	Notice of Claim against "political subdivision" must be filed with the clerk or secretary within 180 days and action must commence within two (2) years. Idaho Code §§ 6-909 and 6-911. For county, suit must be filed within six (6) months after first rejection of claim. Idaho Code §§ 5-221.	A governmental entity will be held liable for the negligence of their employees while driving a motor vehicle as long as the employee was driving while in the scope of their employment and no exceptions apply. *Teurlings v. Larson*, 156 Idaho 65, 320 P.3d 1224 (2014). "Governmental entity" means and includes the state and political subdivisions as herein defined. Idaho Code § 6-903(2).	Idaho's "political subdivisions" and their employees while acting within the scope of their employment and without malice shall not be liable for: (1) An act or omission in the execution of a statute or a discretionary duty; (2) Any claim arising out of assault, battery, misrepresentation, false imprisonment; and (3) Arises out of the collection of any tax or fee. See Idaho Code § 6-904; § 6-904 (a); and § 6-904 (b) for other specific exceptions.	"Political subdivision" not liable for damages from a single occurrence exceeding $500,000. This limit doesn't apply if political subdivision has purchased liability insurance in excess or if the action is caused by willful or reckless conduct. Idaho Code § 6-926. No punitive damages against "political subdivision." Idaho Code § 6-918.

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ILLINOIS	**Local Governmental and Governmental Employees Tort Immunity Act.** Lists exceptions to liability of local governments and their employees, including legislative or discretionary functions. 745 I.L.C.S. § 10/2-101, *et seq.* The Act does not impose duties but, instead, only confers immunities and defenses. *Kirschbaum v. Village of Homer Glen*, 848 N.E.2d 1052 (Ill. App. 2006). **Public Duty Rule Abolished** Illinois municipalities used to be able to claim this defense, which states that is no common law duty to the general public for a municipality's failure to enforce an ordinance or building code. However, the Illinois Supreme Court abolished the Public Duty Rule in 2016 in *Coleman v. E. Joliet Fire Prot. Dist.,* 46 N.E.3d 741 (Ill. 2016). This is retrospective, so parties can look back to claims that were not recoverable in 2016 due to this Public Duty	Suit against local entity and/or public employee must be filed within one (1) year of date cause of action accrued. 745 I.L.C.S. § 10/8-101(a). Suit against local entity for patient care must be brought within two (2) years after date on which claimant knew or should have known of injury, but in no event longer than four (4) years. 745 I.L.C.S. § 10/8-101(b).	Local government liable if there is a duty, except for: • Adopt or fail to adopt or enforce law. § 2-103. • Administration of licenses. § 2-104. • Negligent inspection of property. § 2-105. • Unsafe conditions of property with notice. § 3-106. • Failure to supervise activity on public property. § 3-108. • Hazardous recreation activity. § 3-109. • Absolute immunity for *discretionary* acts as opposed to *ministerial* acts. § 2-201. • *Ministerial* act is merely *execution of set task*, which law imposes. Nothing remains for judgment or discretion. Must point to act/omission. Duty to maintain property (stop signs) in safe condition. *Bubb v. Springfield Sch. Dist. 186*, 657 N.E.2d 887 (Ill. App. 1995). Must be actual or constructive notice of dangerous condition in sufficient time to remedy. *Mostafa v. City of Hickory Hills*, 677 N.E.2d 1312 (Ill. App. 1997).	**Discretionary Act Immunity.** **Discretionary Act**. Municipality immune from liability for discretionary acts. They involve personal deliberation and judgment. **Ministerial Act**. Municipality not immune for acts which a person performs on a given state of facts in a prescribed manner, in obedience to legal authority and without reference to discretion of the propriety of the act. Burden on government to prove. Case by case basis. Strictly construed against government. §§ 2-109 and 2-201; *Gutstein v. City of Evanston*, 929 N.E.2d 680 (Ill. App. 2010). **Two-prong test:** (1) *Employee's Position*: Must determine policy *and* exercise discretion. (2) *Employee's Act*: Does claim involve "discretionary policy determination"? *Collins v. Bartlett Park Dist*., 997 N.E.2d 821 (Ill. App. 2013). No duty to install traffic signs or streetlights. Once decided, however, liable if not maintained. *Parsons v. Carbondale Township*, 577 N.E.2d 779 (Ill. App. 1991). Operation of a sewage system is subject to statutory and regulatory guidelines and is ministerial. *Trtanj v. City of Granite City*, 884 N.E.2d 741, 750 (Ill. App. Ct. 2008).	No punitive damages (unless employee sued in personal capacity). 745 I.L.C.S. § 10/2-102. Purchase of liability insurance does not waive immunity. 745 I.L.C.S. § 10/9-103(c).

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INDIANA	**Indiana Tort Claims Act.** "Governmental entity" under ITCA includes "political subdivisions" which in turn includes county, township, city, town, etc. I.C. § 34-6-2-110; I.C. § 34-6-2-49. Political subdivision liable for tortious conduct or conduct of their employees acting within the scope of employment, unless the conduct is within an immunity granted by statute. I.C. § 34-13-3-3 (1973). Water utility is not "political subdivision" for immunity purposes. *Harrison v. Veolia Water Indianapolis, LLC*, 929 N.E.2d 247 (Ind. App. 2010).	Notice of a claim against a political subdivision must be filed with: (1) Governing body of that political subdivision; or (2) Indiana political subdivision risk mgmt. commission created under § 27-1-29. Must file within 180 days after the loss occurs. I.C. § 34-13-3-8(a).	The defense of sovereign immunity is not available to a political subdivision for the negligent operation of its vehicles. *State v. Turner*, 286 N.E.2d 697(1972); 3A Ind. Law Encyc. Automobiles and Motor Vehicles § 123. "Public duty doctrine" means no liability on fire department if duty to plaintiff is not different from duty to other citizens and its efforts are made in response to general duty to protect safety and welfare of public. *City of Hammond v. Cataldi*, 449 N.E.2d 1184 (Ind. App. 1983).	There are several exceptions to waiver of immunity including: (1) *discretionary* functions (involve discretion to determine whether or not to perform act, and if so, in what particular way); (2) the adoption and enforcement of or failure to adopt and enforce a law; and (3) the act or omission of anyone other than the governmental entity or their employee. See I.C. § 34-13-3-3 for more exceptions. Early approach was to distinguish actions as either *ministerial* or *discretionary*, the former not immune. Today, "*planning/operational test*" is used. Immunity only if function "can be properly characterized as policy decisions that have resulted from a conscious balancing of risks and benefits and/or weighing of priorities." *Peavler v. Bd. of Comm'rs of Monroe Cty.*, 528 N.E.2d 40 (Ind. 1988).	No punitive damages against the State. I.C. § 34-13-3-4. Indiana shall not be liable for more than $300,000 to a single claimant (if before 1/1/06) or $500,000 (if after 1/1/06 and before 1/1/08) or $700,000 (if after 1/1/08) and for a single occurrence, liability shall not exceed $5,000,000. I.C. § 34-13-3-4.

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IOWA	**Tort Liability of Governmental Subdivisions.** I.C.A. § 670.1. Municipality liable for torts in course and scope whether action governmental or proprietary, except as set forth in I.C.A. § 670.4.	An action must be brought within two (2) years of the damage or injury. I.C.A. § 670.5.	**Presumption of Liability.** *Graber v. City of Ankney*, 656 N.W.2d 157 (2003). Governmental subdivision must defend its employees and indemnify them. I.C.A. § 670.8. General rule in examining municipal immunity is liability; immunity is the exception. I.C.A. §§ 670.2, 670.4, Subd. 3.	Exceptions to liability: • Claim covered by work comp; • Police acting with care; • Failure to discover latent defect; • Negligent design of public improvement; • Negligent design of recreational facility; and • "*Discretionary*" function: 2-step test used rather than *planning/ operational* test. (1) Whether the action involved a matter of choice by employee; and (2) Judgment call is kind the discretionary function was designed to shield. I.C.A. § 670.14. Distinction is between judgment that embodies a professional assessment undertaken pursuant to a policy of settled priorities and a fully discretionary judgment that balances incommensurable values in order to establish those priorities. *Graber v. City of Ankeny*, 656 N.W.2d 157 (Iowa 2003).	No Punitive Damages I.C.A. § 670.4. No Damage Caps

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KANSAS	**Kansas Tort Claims Act.** K.S.A. §§ 75-6101 - 75-6120 (1979). Governmental entity liable for negligence unless exception in Act. Liability is the rule, immunity the exception. "Governmental entity" includes state or municipality. K.S.A. § 75-6102(c).	Notice of Claim must be filed with the clerk or governing body. Suit can be filed after denial or 120 days. Plaintiff has 90 days after denied even if Statute of Limitations runs. K.S.A. § 12-105b(d). "Substantial compliance" with essential elements is okay. *Sleeth v. Sedan City Hospital*, 317 P.3d 782 (Kan. 2014).	Governmental entities shall be liable for damages caused by a negligent act or omission of any of its employees while acting within the scope of employment under circumstances where a private person, would be liable. K.S.A. § 75-6103.	No liability for: (1) legislative functions; (2) judicial functions; (3) failure to enforce a law; (4) failure to exercise or perform a *discretionary* function or duty on the part of a governmental entity or employee. See K.S.A. § 75-6104 for more exceptions. "Discretionary function" means more than use of judgment. Must involve element of policy formation. *Clark v. Thomas,* 505 F. Supp.2d 884 (D. Kan. 2007).	Municipal liability shall not exceed $500,000 for claims arising out of a single occurrence or accident. A governmental entity or its employees acting within the scope of employment shall not be liable for punitive damages. K.S.A. § 75-6105.
KENTUCKY	**Claims Against Local Governments.** Local governments liable for negligence unless there is exception in Act. K.R.S. §§ 65.2001 to 65.2006 (1988). "Local government" includes city, county, special district, etc. K.R.S. § 65.2002.	Notice of a claim against city for defect in the condition of any bridge, street, sidewalk, alley, or other public thorough fare must be provided to mayor, city clerk, or clerk of the board of aldermen within ninety (90) days of occurrence. K.R.S. § 44.110. General Statutes of Limitations apply.	Municipalities remain liable for acts of employees carrying out "ministerial" duties. This includes negligent maintenance of thoroughfares and designing and building storm drainage systems. K.R.S. § 65.2003; *Com., Trans. Cabinet, Dept. of Highways v. Nash,* 2006 WL 2382730 (Ky. App. 2006). Municipality must defend and indemnity employees. K.R.S. § 65.2005.	No liability for: (1) Claim covered by work comp; (2) Collection of taxes; (3) Judicial or legislative act; and (4) "Discretionary" act. K.R.S. § 65.2003. The process of deciding to build a sewer system is a discretionary function, while the actual building of the system is ministerial. *City of Frankfort v. Byrns*, 817 S.W.2d 462 (Ky. App. 1991).	$200,000 Per Person $350,000 Per Occurrence K.R.S. § 44-070. After a final judgment local government may be allowed to pay judgment in periodic payments if the judgment was not totally covered by insurance and funds available are not sufficient to cover the judgment. K.R.S. § 65.2004.

STATE	LEGAL AUTHORITY	NOTICE DEADLINES	CLAIMS/ACTIONS ALLOWED	COMMENTS/EXCEPTIONS	DAMAGE CAPS
LOUISIANA	**Louisiana Governmental Claims Act.** La. R.S. §§ 13:5101-5113 (1975). The State, a State agency, or a *political subdivision* shall not be immune from suit and liability for injury to person or property. La. Const. Art. XII, § 10. Louisiana Governmental Claims Act applies to political subdivisions (parishes, municipalities, special districts, sheriffs, etc.). La. R.S. § 13:5102.B.	Suit must be brought in Louisiana State Court. La. R.S. § 13:5106. The notice deadline for a suit against the State is the equal to the normal statute of limitations for that type of claim. La. R.S. § 13:5108. Service must be requested within ninety (90) days. La. R.S. § 13:5107(D). One (1) year statute of limitations. La. R.S. § 13:5108.	Political subdivision will be liable for proprietary functions such as the negligent operation of a motor vehicle by an employee or officer done within the scope of their employment. *Fullilove v. U.S. Cas. Co. of N.Y.*, 129 So.2d 816 (La. App. 1961); La. Civ. Code. Art. 2317. City liable if it fails to repair a dangerous sidewalk condition in reasonable time after notice of condition. *Haindel v. Sewerage & Water Board*, 115 So.2d 871 (La. App. 1959). Street/sidewalk maintenance is a governmental function and liability is the exception. City must keep streets and sidewalks safe. To be liable, defect must be dangerous or calculated to cause injury and danger must be anticipated from defect. *Carlisle v. Par. of E. Baton Rouge*, 114 So.2d 62 (La. App. 1959).	No liability (qualified immunity) for policymaking or *discretionary* acts when such acts are within the scope of their lawful powers and duties except for acts not reasonably related to governmental objectives and acts which constitute criminal, fraudulent, or intentional misconduct. La. R.S. § 9:2798.1. No liability for damage caused by condition of buildings or things unless the political subdivision had actual or constructive notice of defect. La. R.S. § 9:2800.	Non-economic damages cap of $500,000 per person for personal injury or wrongful death. Does not include property damages, medical expenses. La. R.S. § 13:5106(B). Money for medical care post-judgment placed in a reversionary trust which goes back to the political subdivision if not used. La. R.S. § 13:5106(B)(3).

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MAINE	**Maine Tort Claims Act.** M.R.S.A. Tit. 14, §§ 8101 – 8118 (1977). Except as otherwise provided in the statutes, all governmental entities are immune from suit on any and all tort claims seeking recovery of damages. If immunity is removed by the Tort Claims Act, a claim for damages must be brought subject to the limitations contained in the Act. M.R.S.A. Tit. 14, § 8103. "Governmental entity" political subdivisions. "Political subdivision" includes any city, town, or county. M.R.S.A. Tit. 14, § 8102(2)(3).	Every claim against a governmental entity or its employees is forever barred unless an action therein is begun within two (2) years after the cause of action accrues. M.R.S.A. Tit. 14, § 8110. Written notice shall be filed within 180 days after any claim or cause. M.R.S.A. Tit. 14, § 8107.	There are four exceptions to governmental immunity. A governmental entity is liable for its negligent acts or omissions with regard to: (1) ownership, maintenance or use of motor vehicle, aircraft, or similar equipment; (2) construction, cleaning or repair of any highway, sidewalk, parking area, bridge, including street signs, traffic lights, guardrails; (3) discharge of pollutants; and (4) Public buildings/land: construction, maintenance, ownership or use of unimproved land, historic sites, or land, buildings, structures or facilities designed for use by public in connection with outdoor recreation. M.R.S.A. Tit. 14, § 8104-A.	A governmental entity is not liable for any claim which results from: (1) legislative acts; (2) judicial acts; and (3) *discretionary* acts (except if the act involves operating a motor vehicle). See M.R.S.A. Tit. 14, § 8104-B for more exceptions. Four-part test for *discretionary* act: (1) Does it involve policy? (2) Is it essential to the realization that policy? (3) Does act require basic policy evaluation, judgment, and expertise? (4) Does municipality possess the lawful authority and duty to do or make the decision? *Darling v. Augusta Mental Health Inst*., 535 A.2d 421 (Me. 1987). Governmental entity not liable for any defect, lack of repair or lack of sufficient railing in any highway, town way, sidewalk, parking area, etc. M.R.S.A. Tit. 14, § 8104-A(4).	$400,000 per single occurrence. M.R.S.A. Tit. 14, § 8105. Except as otherwise provided, personal liability of a governmental employee shall be subject to a limit of $10,000 for any such claims arising out of a single occurrence. M.R.S.A. Tit. 14, § 8104-D. No judgment against governmental entity shall include punitive damages. M.R.S.A. Tit. 14, § 8105. If governmental entity immune but covered by insurance, it is liable (immunity waived) up to the limits of the insurance coverage. M.R.S.A. Tit. 14, § 8116.

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MARYLAND	**Local Government Tort Claims Act.** Md. Code Ann., Cts. & Jud. Proc. § 5-301, *et seq*. Local government not immune to tort claims, unless exception set forth in statute ("indirect statutory qualified immunity"). Md. Code § 5-303.	A claimant may not institute an action against the State unless the claimant submits written notice of claim within one (1) year. Notice given to the corporate authorities of the local government. "Actual notice" may be sufficient. Md. Code State Gov't § 5-304.	Employee must be sued directly, not the governmental entity. *Holloway-Johnson v. Beall*, 103 A.3d 720 (Md. 2014), *aff'd in part, rev'd in part,* 130 A.3d 406 (Md. 2016). Local government responsible for any judgment against employee. If motor vehicle, defense only for damages in excess of insurance policy limits. Md. Code § 5-303(b); § 5-307(b). Liable for negligence in operation of motor vehicle. Md. Code § 5-507(a)(2).	No immunity if act is: (1) *Discretionary* function; and (2) Without malice. Md. Code § 5-507; *Thacker v. City of Hyattsville*, 762 A.2d 172 (Md. Ct. App. 2000), *cert. denied*, 768 A.2d 55 (2001). Employee may not sue fellow employee if covered under workers' compensation. Md. Code § 5-302(c).	$400,000 Per Person $800,000 Per Occurrence. (Excluding Interest) Md. Code § 5-303. The State and its officers and units are not liable for punitive damages. Md. Code § 5-303.

STATE	LEGAL AUTHORITY	NOTICE DEADLINES	CLAIMS/ACTIONS ALLOWED	COMMENTS/EXCEPTIONS	DAMAGE CAPS
MASSACHUSETTS	**Massachusetts Tort Claims Act.** M.G.L.A. Ch. 258, § 2 to § 14 (1978). Public employers (county, city, town, etc.) are liable for injury to property or personal injury caused by negligence of public employee in course and scope, in the same manner and to the same extent as a private individual (tort and contract). M.G.L.A. Ch. 258 § 2.	Claim must be presented in writing to executive officer of the public employer within two (2) years after the date upon which the cause of action arose and denied. Failure to act in six (6) months is deemed denial. Exceptions: (1) Plaintiff led to believe that presentment not an issue; (2) Actual notice. M.G.L.A. Ch. 258 § 4. No civil action can be brought more than three (3) years after accrual. M.G.L.A. 258 § 4.	Public premises owner owes duty of reasonable care to all persons lawfully on premises. *Doherty v. Belmont*, 485 N.E.2d 183 (Mass. 1985). ***Public Duty Rule*:** The public duty doctrine is considered when an individual alleges that law enforcement personnel or other government employees are liable for injuries due to a breach of a legal duty. Unless the employee created or enhanced a risk or had a special relationship with the plaintiff, there is no recovery because the duty owed by the government to its citizens is to the public generally and not to citizens individually. *Judson v. Essex Agricultural and Technical Institute*, 635 N.E.2d 1172 (Mass. 1994).	Public employer not liable for any claim based upon an act or omission as follows: (1) in the execution of a statute; or (2) *discretionary* acts; or (3) arising out of an intentional tort, assault, libel, slander, or misrepresentation; or (4) negligent inspection of property. See other exceptions at M.G.L.A. 258 § 10. Discretionary function two-step test: (1) Is there discretion as to what course of conduct to follow? (2) Is it the type of discretion for which the Act provides immunity? *Fortenbacher v. Com.*, 888 N.E.2d 377 (Mass. 2008).	Liability of public employer may not exceed $100,000 for each plaintiff. Public employer not liable to levy or execution or for interest prior to judgment or for punitive damages. Claims against the Massachusetts Bay Transportation Authority are not subject to the $100,000 limit. M.G.L.A. Ch. 258, § 2.

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MICHIGAN	**Governmental Tort Liability Act.** M.C.L.A. §§ 691.1401 through 1419 (1986). Governmental agency (including political subdivisions) is immune if engaged in a *governmental* function (activity expressly or impliedly mandated or authorized by constitution, statute, local charter or ordinance, or other law). M.C.L.A. §§ 691.1407(1). Governmental immunity is to be broadly construed, unless a narrowly drawn exception applies in a claim. *Nawrocki v Macomb County Road Comm.,* 615 N.W.2d 702 (Mich. 2000).	Notice of claim must be filed within 120 days and served on the municipal employee appointed to accept service of complaints, (extended up to 180 days if disability). Substantial compliance is okay. M.C.L.A. § 600.1404. All claims must be filed with the Clerk of the Court of Claims within one year after such claim has accrued. M.C.L.A. § 600.6431. Court of Claims has exclusive jurisdiction over claims made against the State. M.C.L.A. § 600.6419.	Governmental agency is immune from tort liability if engaged in the exercise or discharge of a *governmental* function. A State employee will be immune from tort liability if: (1) acting or reasonably believes they are acting within the scope of employment; (2) the governmental agency is engaged in the exercise of a governmental function; or (3) does not involve gross negligence or an intentional act. M.C.L.A. § 691.1407. Immunity does not apply when engaged in a *proprietary* function (any activity which is conducted primarily for the purpose of producing a pecuniary profit for the governmental agency). M.C.L.A. § 691.1413.	Specific exceptions to immunity: (1) maintenance of public highways (knew or should have known of defect), M.C.L.A. § 691.1402; (2) negligent operation of a government-owned motor vehicle,* M.C.L.A. § 691.1405; (3) public building defects, M.C.L.A. § 691.1406; (4) performance of proprietary functions by government entities, M.C.L.A. § 691.1413; (5) medical care or treatment provided to a patient, M.C.L.A. § 691.1407(4); and (6) sewage disposal system events, M.C.L.A. § 691.1417. *Municipal employee's personal liability when driving his own vehicle or the municipality's vehicle is restricted to actions found to be "grossly negligent." *Alex v. Wildfong,* 594 N.W.2d 469 (Mich. 1999).	None Punitive damages are generally not recoverable unless authorized by statute. *Casey v. Auto Owners Ins. Co.,* 729 N.W.2d 277 (2006).

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MINNESOTA	**Tort Liability, Political Subdivisions.** M.S.A. §§ 466.01, *et seq*. Municipality liable for torts of their employees acting within scope of employment, regardless whether the action is *governmental* or *proprietary*. M.S.A. § 466.02.	Notice of Claim must be given within 180 days of loss. M.S.A. § 466.05.	Liable for negligent design, maintenance or operation of sewer system if no evidence that City balanced the costs and benefits of upgrading system. *Nordlie v. City of Maple Lake*, 2006 WL 923649 (Minn. App. 2006) (*unpublished*).	Exceptions to liability: (1) Accumulation ice and snow; unless public building; (2) Discretionary acts (arises out of a planning-level/policy-making decision); (3) Parks and recreation areas; (4) Beach of pool equipment; and (5) Any loss other than property damage or personal injury/death. M.S.A. § 466.03.	$500,000 Per Person; $1,500,000 Per Occurrence after July 1, 2009). If claim arises out of the release of a hazardous substance, then 2x the applicable limits apply. No punitive damages. If liability insurance, limits of insurance are the maximum. M.S.A. § 466.04.
MISSISSIPPI	**Mississippi Tort Claims Act.** M.C.A. §§ 11-46-1 through 11-46-23 (1984). "Governmental entity" includes state and its political subdivisions (county, municipality, school district, etc.). M.C.A. § 11-46-1(g)(i).	Notice of claim must be filed with chief executive officer of the governmental entity at least ninety (90) days before instituting suit. M.C.A. § 11-46-11(1). Suit must be commenced within one (1) year after the date of the tort. M.C.A. § 11-46-11(3). Bodily injury and property claims must be brought within three (3) years after injury discovered. M.C.A. § 11-15-49.	The immunity of governmental entity from claims arising out of *ministerial* acts is waived. M.C.A. § 11-46-5. "*Ministerial* act" is one which has been imposed by law and is required at a time and in a manner or upon conditions which are specifically designated, the duty to perform under the conditions specified not being dependent upon judgment or discretion. M.C.A. § 11-46-9(1)(d).	Governmental entity and its employees preserve their immunity for claims caused by: (1) a legislative or judicial action or inaction; (2) an act or omission of a State employee exercising due care in the execution of a statute or rule; (3) police/fire protection (unless reckless); and (4) *discretionary* function (official required to use judgment or discretion). See M.C.A. § 11-46-9 for other exceptions. Immunity will not be granted to a State employee when they negligently operate a motor vehicle outside of a discretionary function. *Mixon v. Mississippi Dep't of Transp.,* 183 So.3d 90 (Miss. Ct. App. 2015).	The State's liability shall not exceed $500,000 for all claims arising out of a single occurrence. The State will not pay punitive damages. M.C.A. § 11-46-15. The limits of insurance purchased by the entity may be higher than those provided for in the statute. M.C.A. § 11-46-16.

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MISSOURI	**Missouri Tort Claims Act.** Mo. Stat. §§ 537.600 - 537.650 (1978). Tort immunity not waived. Modified form of sovereign immunity. Public "entity" includes local government and its employees. Mo. Stat. § 537.602(2). Three immunities: (1) Sovereign immunity (2) Official Immunity (3) Public Duty Doctrine.	Claims against public entity must be brought to the Commissioner of Administration, for approval, within two (2) years after such claim accrues. Mo. Stat. § 33.120.	The immunity of public entity is waived in these instances: (1) injuries resulting from State employee's negligent act or omission while operating a motor vehicle within the scope of employment; (2) injuries caused by the dangerous condition of a State-owned property; and Mo. Stat. § 537.600. (these are absolute waivers). (3) Contract claims. *Kunzie v. City of Olivette*, 184 S.W.3d 570 (Mo. 2006).	Immunity is waived up to the extent of the coverage provided in the policy or self-insurance plan. Mo. Stat. §§ 537.610 (political subdivisions) and 71.185 (municipalities). No immunity for *proprietary* functions (for benefit or profit of municipality). Immunity only for *governmental* functions (for common good). Construction and maintenance of sewers is a proprietary function.	Claims shall not exceed $2,000,000 for claims arising out of a single occurrence and shall not exceed $300,000 for any one person in a single accident or occurrence. Public entity will not pay punitive damages. Mo. Stat. § 537.610. Political subdivision may purchase liability insurance.
MONTANA	**Montana Tort Claims Act.** Mont. Stat. §§ 2-9-101 through 2-9-114 (1973). "Political subdivision" includes counties, cities, municipalities, school districts, etc. Mont. Stat. § 2-9-101.	Claim must first be presented in writing to the clerk or secretary. The Department must grant or deny the claim within 120 days. Upon receipt of the claim, the statute of limitations is tolled for 120 days. Mont. Stat. § 2-9-301.	Political subdivision is subject to liability for its torts and those of its employees acting within the scope of employment or duties whether arising out of a *governmental* or *proprietary* function. Mont. Stat. § 2-9-102. No immunity for operating motor vehicle, aircraft, or other transportation. Mont. Stat. § 2-9-111.	Political subdivision shall not be liable for certain legislative, judicial, and gubernatorial actions. Mont. Stat. §§ 2-9-111 through 2-9-113. See Mont. Stat. § 2-9-108 for other exceptions.	$750,000 Per Claim $1.5 Million Per Occurrence Mont. Stat. § 2-9-108. The State and other governmental entities are immune from exemplary and punitive damages. Mont. Stat. § 2-9-105. Insurer may agree by written endorsement to provide coverage to the governmental agency in amounts in excess of the statutory amount. Mont. Stat. § 2-9-108.

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NEBRASKA	**Political Subdivisions Tort Claims Act (PSTCA)**. Neb. Rev. Stat. §§ 13-901 to 928 (1969). Applies to counties, cities, municipalities, school districts, etc. Limited waiver of governmental immunity. PSTCA read in harmony with the State Tort Claims Act. *Kimminau v. City of Hastings,* 864 N.W.2d 399 (Neb. 2015).	Notice of claim must be filed within one (1) year of accrual. Suit must be filed within two (2) years. Neb. Rev. Stat. § 13-919. Must be filed with the clerk, secretary, or other official whose duty it is to maintain the official records of the political subdivision, or the governing body of a political subdivision may provide that such claims may be filed with the duly constituted law department of such subdivision. Neb. Rev. Stat. § 13-905. *Woodard v. City of Lincoln*, 588 N.W.2d 831, 838 (Neb. 1999). Time to file suit extended six (6) months from date of mailing of claim determination or withdrawal of claim if Statute of Limitations would expire. If no disposition of claim within six (6) months, claim can be withdrawn, and suit filed. Neb. Rev. Stat. § 13-919. City can be estopped from claiming it received inadequate notice from subrogated carrier. *Great N. Ins. Co. v. Transit Auth. of City of Omaha*, 2021 WL 1431862 (Neb. 2021).	Political subdivisions liable in same manner as private individual (ministerial act – duty imposed by law). Neb. Rev. Stat. § 13-908. Liable for operation of motor vehicle. Neb. Rev. Stat. § 13-910. Liable for sewer backup if city fails to take reasonable action to prevent backup. *Desel v. City of Wood River*, 614 N.W.2d 313 (Neb. 2000); H*enderson v. City of Columbus*, 811 N.W.2d 699, 712 (Neb. App. 2012).	Exceptions to liability: (1) *discretionary* function (official required to use judgment or discretion); (2) failure to inspect or negligent inspection of property unless reasonable notice; (3) claim by employee covered by workers' compensation; (4) malfunction or destruction of traffic sign unless not corrected within reasonable time after notice; (5) snow or ice conditions caused by nature on highway; (6) highway repair unless notice; and (7) recreational activities unless gross negligence. Neb. Rev. Stat. § 13-910. Substantial compliance when notice supplies the requisite and sufficient notice. *Chicago Lumber Co. v. School Dist. No. 71,* 417 N.W.2d 757 (Neb. 1988). In order to substantially comply with the requirements of § 13–919(1), notice must still be filed with an individual or office designated in the statute. *Willis v. City of Lincoln,* 441 N.W.2d 846 (Neb. 1989).	$1 Million Per Person $5 Million Per Occurrence Neb. Rev. Stat. § 13-926.

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NEVADA	**Nevada Tort Claims Act.** N.R.S. §§ 41.031 through 41.0337 (1965). Includes "political subdivisions" (counties, cities, school districts, etc.) N.R.S. § 41.031.	None A claim must be filed with the governing body of the local jurisdiction within two (2) years after cause of action accrues. Filing a claim isn't a condition precedent to bringing an action against political subdivision. N.R.S. § 41.036.	State waives the immunity of political subdivisions and consents to have their liability determined in accordance with the same rules of law as are applied to civil actions against natural persons, except as otherwise provided. N.R.S. § 41.031. Decision to divert storm water into ditch involved individual judgment or choice and was immune. *Warner v. City of Reno*, 367 P.3d 832 (Nev. 2010). Operating motor vehicle is not discretionary. Decision to install traffic sign is discretionary, but not duty to maintain. *Nevada Power Co. v. Clark Cty.*, 813 P.2d 477 (Nev. 1991).	No action may be brought against the political subdivision or its employees which are based upon: (1) the performance of a *discretionary* act (involves element of individual judgment or choice and is based on considerations of social, economic, or political policy); (2) failure to inspect any building, structure, vehicle, street, public highway or other public work, to determine any hazards, deficiencies or other matters, whether or not there is a duty to inspect; and (3) injury sustained from a public building or public vehicle by a person who was engaged in any criminal act. N.R.S. §§ 41.032, 41.033, 41.0334.	Damages against political subdivision may not exceed the sum of $100,000, exclusive of interest. The political subdivision will not pay punitive damages. N.R.S. § 41.035.

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NEW HAMPSHIRE	**Bodily Injury Actions Against Governmental Units**. N.H. Rev. Stat. §§ 507-B:1 to 541-B:11. Municipal and county common law immunity abolished in *Merrill v. City of Manchester*, 332 A.2d 378 (N.H. 1974) (liability same as that of private corporation).	Notice of Claim must be filed within sixty (60) days of discovery of injury. Suit must be filed within three (3) years of injury or damage. N.H. Rev. Stat. § 507-B:7.	**General Grant of Immunity.** No "governmental unit" liable except as provided in Chapter 507-B. N.H. Rev. Stat. § 507-B:5. Although it doesn't address it, "discretionary function immunity:(*discretionary* vs. *ministerial*) has been regularly applied by courts: • Decision to lay out roads; • Traffic control; and • Setting road maintenance. *Maryea v. Velardi*, 135 A.3d 121 (N.H. 2016). Statute doesn't completely occupy the field of municipal immunity.	Exceptions to immunity: "Governmental Unit" liable for damages *arising out of ownership, occupation, maintenance or operation of all motor vehicles, and all premises.** N.H. Rev. Stat. § 507-B:2. *No liability for snow, ice, or other weather hazards on premises owned, occupied, maintained, or operated, unless gross negligence. N.H. Rev. Stat. § 507-B2-b. "Governmental unit" means any political subdivision. N.H. Rev. Stat. § 507-B:1(I). "Political subdivision" means any village district, school district, town, city, county or unincorporated place in the state. N.H. Rev. Stat. § 541-B:1(VI).	$275,000 Per Person $925,000 Per Occurrence N.H. Rev. Stat. § 507-B:4.

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NEW JERSEY	**New Jersey Tort Claims Act.** N.J.S.A. §§ 59:1-1 through 59:12-3 (1972). "Public entity" includes all counties, municipalities, districts, and other political subdivisions. N.J.S.A. § 59:1-3. Immunity waived. A "public entity" is liable for injury caused by an act or omission of a public employee in the same manner and to the same extent as a private individual unless there is exception in Act. N.J.S.A. § 59:2-2.	A claim against a "public entity" for death or for injury or damage to person or to property shall be presented not later than the 90th day after accrual of the cause of action. Six (6) months after notice has been received, suit may be filed. Suit must be filed within two (2) years after the date of accrual. N.J.S.A § 59:8-8. A suit for contribution or indemnity against a public entity by a defendant is included in these requirements. *Jones v. Morey's Pier, Inc.,* 2017 WL 3184454 (N.J. 2017).	Public entity liable for: • Condition of property if dangerous condition and failure to take action "palpably unreasonable." N.J.S.A. § 59:2-3. • Sewer back up if maintenance program was palpably unreasonable or negligence in performance. • *Ministerial* or *operational* functions. • Negligent operation of motor vehicle. *Gruschow v. New Jersey State Highway Dep't*, 152 A.2d 150 (N.J. App. 1959).	Limitations on liability: • A *discretionary* function (involves policy judgment or determining resources or when or whether to purchase equipment, construct or maintain facilities, hire personnel or provide adequate services). N.J.S.A. § 59:2-3. • Adopting or failing to adopt a law or by failing to enforce any law. N.J.S.A. § 59:2-4. • Failure to make an inspection, or negligent inspection of any property. N.J.S.A. § 59:2-6. • Crime, actual fraud, actual malice, or willful misconduct. N.J.S.A. § 59:2-10. • Discretion in decision-making or prioritizing needs when faced with budgetary issues. See N.J.S.A. § 59:2-5 for other exceptions.	No Dollar Caps No subrogation allowed against "a public entity or public employee." N.J.S.A. § 59:9-2(e). No recovery for pain and suffering, but limitation on recovery unless permanent loss of bodily function, permanent disfigurement, or dismemberment when medical expenses are in excess of $3,600. Punitive damages cannot be awarded. N.J.S.A. § 59:9-2 (c) and (d).

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NEW MEXICO	**New Mexico Tort Claims Act.** N.M.R.A. §§ 41-4-1 through 41-4-30 (1976). The NMTCA applies to all governmental entities and their employees, including "local public bodies" (city, county, etc.). N.M.R.A. § 41-4-2A.	Written notice must be provided to local public body within ninety (90) days after the occurrence. N.M.R.A. § 41-4-16. Action against local public body must be brought within two (2) years after occurrence. N.M.R.A. § 41-4-15.	Immunity is not waived. Tort Claims Act shields *local public bodies* and their employees from liability for torts except when immunity is specifically waived. N.M.R.A. §§ 41-4-1 & 41-4-4.	Exceptions to immunity: (1) Operation or maintenance of any motor vehicle, aircraft or watercraft. N.M.R.A. § 41-4-5. (2) Operation or maintenance of any building, public park, machinery, equipment or furnishings. N.M.R.A. § 41-4-6. (3) Operating certain public utilities and services such as gas, electric, water, waste collection or disposal, heating, and ground transportation. N.M.R.A. § 41-4-8. (4) Constructing and maintaining any bridge, culvert, highway, roadway, street, alley, sidewalk, or parking area. N.M.R.A. § 41-4-8. See N.M.R.A. §§ 41-4-4 through 41-4-12 for other exceptions.	Liability shall not exceed: (1) $200,000 for damage to or destruction of real property; (2) $300,000 for past and future medical expenses; (3) $400,000 for all damages other than real property damage and medical expenses; and (4) total liability for a single occurrence shall not exceed $750,000. Local public body will not pay punitive damages. N.M.R.A. § 41-4-19.

STATE	LEGAL AUTHORITY	NOTICE DEADLINES	CLAIMS/ACTIONS ALLOWED	COMMENTS/EXCEPTIONS	DAMAGE CAPS
NEW YORK	**New York Court of Claims Act.** N.Y. Ct. Cl. Act §§ 8 – 12 (1929). State waives immunity and consents to being sued in the same manner as a private person would, so long as requirements of the Court of Claims Act are complied with. Parallel statute deals with Port Authority almost identically. N.Y. Unconsol. Law §§ 7101 to 7112.	Written Notice of Claim must be filed and served on the municipal government agency, by personal delivery, or registered or certified mail within 90 days (6 months for breach of contract claims) after the claim arises. It must be served on a person designated by law to receive summonses in Supreme Court actions or an attorney representing the public corporation. N.Y. Ct. Cl. Act § 10. Specific requirements for filing claim. N.Y. Ct. Cl. Act § 11. Court of Claims has exclusive jurisdiction over claims against State but not city, county or town. Suit must be filed within one year and 90 days after incident. N.Y. Gen. Mun. Law § 50-i.	If the act is a *discretionary* (decision based on policy) there is immunity. *Valdez v. City of N.Y.*, 960 N.E.2d 356 (N.Y. 2011). If act is *proprietary* (act could be undertaken by a private enterprise, such as property ownership, operation of a motor vehicle, or providing hospital services. there is liability). Every county, municipality (except NYC) is liable for the negligent operation of a municipally owned vehicle or other transportation. N.Y. Gen. Mun. Law §§ 50-a, 50-b. However, emergency vehicle involved in "emergency operation" (pursuing violator of the law) with lights and sirens on, is immune. N.Y. Veh. & Traf. § 1104. Authorized emergency vehicles, § 1104; *Fuchs v City of New York*, 2017 WL 4202315 (Sup. Ct. 2017). Municipality liable for construction defects or inadequate maintenance. *Briga v. Town of Binghamton*, 778 N.Y.S.2d 545 (3rd Dept. 2004).	If *governmental* act involved, municipality is liable only if there was a *special duty* owed to plaintiff as opposed to mere public duty (Public Duty Defense). Special duty formed in three ways: (1) Statute for class of persons; (2) Assumption of duty toward person (most common); and (3) Assume direction and control in face of known safety violation. If *ministerial* act, plaintiff must still show a special duty existed. *McLean v. City of New York*, 905 N.E.2d 1167 (N.Y. App. 2009) (duty trumps all else). If *governmental* act and *special duty* exists, no immunity if act was *ministerial*. If *discretionary*, government must actually have exercised its discretion to be immune.	None. No punitive damages allowed. *Wang v. N.Y. State Dep't of Health*, 933 N.Y.S.2d 503 (N.Y. Sup. Ct. 2011).

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NORTH CAROLINA	Local government immune from *governmental* acts in scope of employment, but not *proprietary* acts. *Data Gen. Corp. v. City of Durham*, 545 S.E.2d 243 (N.C. App. 2001). **Public Duty Doctrine:** When government protecting public at large – automatically immune. No special relationship.	None Cities may adopt own notice requirements. *Miller v. City of Charlotte*, 219 S.E.2d 62 (N.C. 1975).	Immunity waived if liability insurance purchased, up to limits of policy. **County:** N.C.G.S.A. § 153A-435. **Cities:** N.C.G.S.A. § 160A-485. Risk pool considered insurance. If local government has immunity, but settles some claims but not others, may be liable under 42 U.S.C. § 1983 (*Dobrowolska* Claim).	Cities with population over 500,000 (only Charlotte) can waive immunity and become subject to the NCTCA. **Proprietary Function:** Not traditionally done by government; also performed by private sector; don't benefit public as whole, charge fee (*e.g.,* golf course, sewer backup due to poor maintenance). **Governmental Function:** Performed for public at large; discretionary. (*e.g.,* decision to construct sewer)	Per Person: No Cap Per Occurrence: $1 Million Punitive damages not allowed unless authorized by statute. *Jackson v. Hous. Auth. of City of High Point*, 341 S.E.2d 523 (N.C. 1986)
NORTH DAKOTA	Political subdivision is liable (1) under circumstances in which the employee would be personally liable, or (2) caused by some condition or use of real or personal property. N.D.C.C. § 32-12.1-03.	None Suit must be filed against political subdivision within three (3) years. N.D.C.C. § 32-12.1-10.	City liable for light and power distribution but not for operation and maintenance of city water sewer system (where no statutes, regulations, or policies prescribing course of action for maintenance and operation). *Olson v. City of Garrison*, 539 N.W.2d 663 (N.D. 1995).	No liability if: (1) Execution of statute; (2) *Discretionary* function (decision making, matter of choice or judgment); and (3) Public duty (unless special relationship). N.D.C.C. § 32-12.1-03(3).	$250,000 Per Person $1 Million Per Occurrence N.D.C.C. § 32-12.1-03. Liability insurance or self-insurance pool may be obtained by political subdivision to cover liability in excess of statutory limits. Statutory limits then in applicable. N.D.C.C. § 32-12.1-05.

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OHIO	**Political Subdivision Tort Liability Act**. Ohio Rev. Code §§ 2744.01 to 3744.10. Political subdivision is immune from both *governmental* and *proprietary* acts, unless exception in statute. Ohio Rev. Code § 2744.03.	None Suit must be filed within two (2) years of accrual. Ohio Rev. Code § 2744.04.	Five Exceptions to Immunity: • Operating motor vehicle; • *Proprietary* acts; • Repair of roads; • Defect of grounds/bldg.; • Liability under § 2743.02; and • Failure of county to erect and maintain guardrails under § 5591.37. Ohio Rev. Code § 2744.03 Decision re: upgrading sewer is governmental function. No immunity for failure to repair sewer system, but immunity if complaint requires design or reconstruction of sewer. *Matter v. City of Athens,* 21 N.E.3d 595 (Ohio 2014); *Coleman v. Portage,* 975 N.E.2d 952 (Ohio 2012).	***Governmental* Function:** For common good of all citizens. Police, fire, regulation and maintenance of roads, judicial, legislative functions. ***Proprietary* Function:** Action traditionally engaged in by private sector (maintenance/operation of hospital, public utility, sewer system, parking lot). No liability under five exceptions if defense exists under § 2744.02(B): • *Discretionary* act (planning); • Not in course and scope; • Malicious/bad faith act. Ohio Rev. Code § 2744.03.	No subrogation claims. Damages reduced by other collateral source recoveries received by the claimant. Ohio Rev. Code § 2744.05(B). No limit on economic damages (medical, lost wages, etc.). Non-economic damages capped at $250,000. Non-catastrophic medical malpractice claims: $350,000 Per Person $500,000 Per Occurrence Catastrophic medical malpractice claims: $500,000 Per Person $1 Million Per Occurrence Ohio Rev. Code § 2744.05.

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OKLAHOMA	**Oklahoma Governmental Tort Claims Act.** 51 Okla. Stat. § 151 – 200 (1978). 51 Okla. Stat. § 152.1(A) political subdivisions are immune whether performing *governmental* or *proprietary* function. 51 Okla. Stat. § 152.1(B) waives immunity as provided in the Act. Same statutory provisions apply to political subdivisions as to state.	Notice of claim within one year after loss. 51 Okla. Stat. § 156(B). Notice filed CMRRR with Risk Management Administrator of the Office of Public Affairs. 51 Okla. Stat. § 156(C). Suit may be filed once claim denied (deemed denied if not approved within 90 days). Plaintiff has 180 days after 90-day period to file. 51 Okla. Stat. § 157.	State employee acting in scope of employment is liable for loss unless falls under exceptions (General Waiver of Immunity). 51 Okla. Stat. § 152.1(A). Liable for operation of motor vehicles. However, liability limited to amount of liability insurance purchased. 51 Okla. Stat. §§ 157.1-158.2.	Thirty-seven (37) exceptions where State not liable for torts of State employees acting in scope of employment: (1) legislative functions; (2) *discretionary* acts such as policy decisions (limited). "Planning-operational" approach to understanding the scope of this exception to liability; (3) natural snow or ice conditions; (4) absence, condition, location or malfunction of traffic sign unless not corrected within reasonable time after notice; (5) subrogation claim; and (6) any loss to person covered by workers' compensation. See 51 Okla. Stat. § 155 for more exceptions.	Property Claims: $25,000. Other Losses: $175,000 per person. ($200,000 for medical negligence). $1 million per occurrence. 51 Okla. Stat. § 154(A). No punitive damages. Several liability only. 51 Okla. Stat. § 154. If insurance, policy terms govern rights and obligations of State. 51 Okla. Stat. § 158. No subrogation claims allowed against political subdivision. 51 Okla. Stat. § 155(28).
OREGON	**Tort Actions Against Public Bodies (a/k/a Oregon Tort Claims Act).** O.R.S. §§ 30.260 - 30.300 (1967). "Public body" includes cities, municipalities, and other local public bodies.	Action must be commenced within two (2) years. O.R.S. § 30.275(9). Notice of claim to any member of the governing body of the public body within 180 days (one (1) year for death). No particular form for notice. Actual notice may suffice. O.R.S. § 30.275.	Oregon Tort Claims Act is limited (partial) waiver of sovereign immunity. Every public body subject to liability for its employees' and agents' torts committed within the scope of their employment, including operation of motor vehicles. O.R.S. § 30.275.	Exceptions to liability: (1) injury covered by workers' compensation; (2) exercise of *discretionary* function* or duty; and (3) act under apparent authority of law. O.R.S. § 30.265(6). **Discretionary* function is policy-making decision (policy judgment). Negligent implementation of policy is not immune. No immunity if duty to act.	Personal Injury: $691,200 per person. $1,382,300 per occurrence. Property damage: $113,400 per person. $566,900 per occurrence. O.R.S. §§ 30.271(4), 30.272(4), 30.273(3) (through 7/1/17). Claims which are subject to the OTCA are not subject to O.R.S. § 30.710, setting limit of $500,000 for non-economic damages in civil actions. O.R.S. § 30.269(2).

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PENNSYLVANIA	**Political Subdivision Tort Claims Act**. 42 Pa. C. S. §§ 8541, 8542. Immunity not waived for local governmental entities (local agency), unless exception in statute. 42 Pa. C. S. §§ 8541. "Local Agency" means a government unit other than the Commonwealth government. 42 Pa. C. S. § 8501.	Notice of Intention to Make Claim against "Local Agency" must be made within six months after cause of action accrued. 42 Pa. C. S. § 5522. No notice needed where "dangerous condition" of real estate, highways, and sidewalks. Potholes require actual written notice and time to fix. Actual or constructive notice okay. 42 Pa. C. S. § 5522(a)(3). No notice required for claim arising from the "care, custody or control" of its real property. 42 Pa. C. S. § 8542(b)(3).	Local Agency liable when: • Operation of motor vehicle; • Care custody and control of personal property; • Care custody and control of real property; • Dangerous conditions of trees, traffic signs, lights or other traffic controls; • Dangerous conditions of facilities of steam, sewer, water, gas or electric systems; • Dangerous condition of streets; • Dangerous conditions of sidewalks; and • Care custody or control of animals. 42 Pa. C. S. § 8542.	No subrogation claims against local agencies. 42 Pa. C. S. § 8533(d).	No Limit Per Person $500,000 Per Occurrence 42 Pa. C. S. § 8553. Pain and suffering only permitted for permanent loss of bodily function, permanent disfigurement or permanent dismemberment where medical expenses exceed the sum of $1,500. *Walsh v. City of Philadelphia*, 585 A.2d 445 (Pa. 1991).

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RHODE ISLAND	**Governmental Tort Liability Act.** R.I.G.L. § 9-31-1 (1970). State and all political subdivisions are liable for all *actions of tort* in the same manner as a private individual or corporation unless exception in statute. R.I.G.L. § 9-31-1.	Three (3) year statute of limitation for any action against State. R.I.G.L. § 9-1-25. Notice of Claim must be given within three (3) years from the date the cause of action accrues. R.I.G.L. § 9-1-25.	Can sue for operation of motor vehicle. *Catone v. Medberry*, 555 A.2d 328 (R.I. 1989). Former distinction between *proprietary* and *governmental* functions no longer is either controlling or of significant assistance in determining liability of municipality (except within public duty doctrine). *O'Brien v. State*, 555 A.2d 334 (R.I. 1989), *holding modified by Verity v. Danti*, 585 A.2d 65 (R.I. 1991).	There are few conditions on the State's consent to suit. *Marrapese v. State*, 500 F. Supp. 1207 (D. R.I. 1980). The *public duty doctrine* grants immunity to government entities and employees engaging in uniquely governmental (*discretionary*) functions involving policy decisions or not ordinarily performed by private individuals. Two exceptions: (1) Special duty (*i.e., proprietary* acts such as driving car, or removing snow from walkway); and (2) Egregious conduct. *Bierman v. Shookster*, 590 A.2d 402 (R.I. 1991).	Damages may not exceed $100,000. R.I.G.L. § 9-31-3. Limit not applicable if political subdivision was engaged in a *proprietary* function or has agreed to indemnify the federal government or any agency. R.I.G.L. § 9-31-3.
SOUTH CAROLINA	**South Carolina Tort Claims Act.** S.C. Code Ann. § 15-78-10, *et seq.* (1986). Limited waiver of sovereign immunity, subject to exceptions. Political subdivision is liable for torts to the same extent as private individual, subject to limitations. S.C. Code § 15-78-40.	Notice is not prerequisite to filing suit. However, two (2) year statute of limitations; Three (3) years if Notice of Claim filed. S.C. Code § 15-78-110. Must wait 180 days after earlier of (1) date claim filed; (2) claim denied; or (3) rejection of settlement offer. If claim procedure followed, must be filed within one (1) year. S.C. Code § 15-78-80.	Sovereign immunity waived (State liable) for all torts unless one of 40 listed exceptions to waiver of immunity.	Non-exclusive list of 40 exceptions to the general waiver of political subdivision sovereign immunity, including, among others: (1) legislative, judicial actions; (2) *discretionary* acts; (3) natural snow or ice conditions; (4) authorized entry on property; (5) absence or condition of traffic sign or barrier unless given reasonable notice to repair; (6) claim against DOT allowed for improper maintenance but not faulty design; and (7) any judicial proceeding. S.C. Code § 15-78-60.	$300,000 Per Person $600,000 Per Occurrence No Punitive Damages For claims against government doctors, dentists, etc.: $1.2 million per occurrence and aggregate limit. S.C. Code § 15-78-120.

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SOUTH DAKOTA	**Remedies Against Public Entities**. S.D.C.L. §§ 21-32a-1 to 21-32a-3. To extent of risk pool or liability insurance purchased, sovereign immunity waived.	Written notice of claim must be filed within 180 days. Suit must be filed within one (1) year. S.D.C.L. §§ 21-32a-1	Public entities liable for *ministerial* acts. *King v. Landguth,* 726 N.W.2d 603 (S.D. 2007).	**Discretionary:** Highway construction and Maintenance; Allocating plows, resource and equipment for snow removal. **Ministerial:** Once it is determined that act should be performed, subsequent performance is ministerial. (*e.g.,* operating motor vehicle). *Masad v. Weber*, 772 N.W.2d 144 (S.D. 2009).	None
TENNESSEE	**Tennessee Governmental Tort Liability Act.** Tenn. Code § 29-20-201, *et seq.* (1973). General immunity granted to counties, municipalities, and other local governmental agencies, unless waived.	None Action must be brought within twelve (12) months. Tenn. Code § 29-20-305.	Exceptions to immunity: (1) Negligent operation of motor vehicles; (2) Negligent construction or maintenance of streets, alleys or sidewalks; (3) Negligent construction or maintenance of public improvements; (4) *Discretionary* functions; and (5) Failure to make or negligent inspection. Tenn. Code §§ 29-20-202 to 29-20-205.	Local government employees may be individually liable. If government liable, employee is immune, unless intentional. Tenn. Code § 29-20-310(b)(c). City responsible for keeping streets and sidewalks in safe repair and is liable for injuries caused by negligence. *Shepherd v. City of Chattanooga*, 76 S.W.2d 322 (Tenn. 1934).	Damages may not exceed local government's insurance coverage. Tenn. Code § 29-20-311. Governmental entity must purchase insurance with minimum limits of: **Personal Injury:** $300,000 Per Person $600,000 Per Occurrence **Property Damage:** $100,000 per act or occurrence. Tenn. Code § 29-20-403.

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TEXAS	**Texas Tort Claims Act (TTCA).** Tex. Civ. Prac. & Rem. Code §§ 101.001–.109 (1969). TTCA is a limited waiver of sovereign immunity (qualified immunity) for certain torts. "Governmental unit" includes a political subdivision (city, county, school district, etc.). Tex. Civ. Prac. & Rem. Code §§ 101.001(3).	Formal, written notice no later than six (6) months after day the incident occurs, reasonably describing: (1) the damage or injury claimed; (2) the time and place of the incident; and (3) the incident. Tex. Civ. Prac. & Rem. Code Ann. § 101.101(a). "Actual notice" can substitute. Tex. Civ. Prac. & Rem. Code Ann. § 101.101(c).	Governmental unit liable for *proprietary* acts, including: • operation and maintenance of a public utility; • amusements owned and operated by the municipality; and • any activity that is abnormally dangerous or ultra-hazardous. Tex. Civ. Prac. & Rem. Code § 101.021 (non-exclusive list). Municipal liability exists only to extent immunity waived. Municipality liable for: • motor vehicle; • condition or use of person/real property. See Tex. Civ. Prac. & Rem. Code Ann. § 101.021.	Immunity for *governmental* functions (police, fire, health and sanitation). Three activities listed that are considered *governmental* functions: • police and fire; • health and sanitation; and • bridge/road maintenance and construction. This section doesn't waive immunity. Must look to § 101.021 to determine if act is *proprietary*. Tex. Civ. Prac. & Rem. Code § 101.0215(b). *Proprietary* acts include construction and maintenance of streets, sanitary or storm sewers. There is NO waiver of immunity for junior college or school districts, except as to motor vehicles. Tex. Civ. Prac. & Rem. Code §§ 101.023 and 100.051. There is a constitutional "taking" when a governmental entity physically damages private property in order to confer a public benefit, under Article I, Section 17 of the Texas Constitution, if it (1) knows that a specific act is causing identifiable harm; or (2) knows that the specific property damage is substantially certain to result from an authorized government action. *Webb v. City of Forth Worth*, 2022 WL 123219 (Tex. App. 2022).	**Bodily Injury/Death:** $250,000 Per Person $500,000 Occurrence **Damage to Property:** $100,000 Occurrence Tex. Civ. Prac. Rem. Code § 101.023. Can recover property damage and personal injury for motor vehicle exception; but only personal injury for death for condition or use of real/personal property.

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UTAH	**Utah Governmental Immunity Act (GIAU).** U.C.A. §§ 63G-7-101 through 63G-7-904 (1963). "Governmental Entity" and its employees retain immunity for all "*governmental functions*" (defined as "activity, undertaking, or operation of a governmental entity") no matter how labelled, unless expressly waived in Act. "Governmental Entity" includes State and all its political subdivisions.	Written Notice of Claim must be filed within one (1) year after denial of claim. U.C.A. §§ 63G-7-401. Within sixty (60) days of filing written Notice of Claim government must approve or deny. Then suit can be brought. U.C.A. §§ 63G-7-401, 402, 403. Plaintiff has one (1) year after denial of claim or after the 60-day period ends to bring the action. Utah Code Ann. §§63-G-7-401, 402, 403.	No liability (exceptions to waiver) for: (1) *discretionary* function (distinct and limited immunity for decision that involves policy-making function); See "*Little* Test" *Little v. Utah*, 667 P.2d 49 (Utah 1983) (*e.g.,* fire fighting). (2) assault, false imprisonment; (3) negligent inspection; (4) judicial proceedings; (5) operation or repair of flood systems; and (6) many others. U.C.A. § 63G-7-201. Governmental entity immune from latent condition of road, tunnel, bridge, sidewalk or any public building or structure.	Immunity waived as to: (1) any act by employee in scope of employment; (2) contractual obligations; (3) defective, unsafe condition of road, sidewalk, bridge, etc.; (4) defect or condition of building, structure, etc. (U.C.A. § 63G-7-301); and (5) injury or damage resulting from employee driving or being in control of a vehicle. U.C.A. § 63G-7-202(3)(c)(2). Three-part test to determine whether there is immunity: (1) whether the activity is a governmental function; (2) whether governmental immunity was waived for the particular activity; and (3) whether there is an exception to that waiver. *Winkler v. Lemieux*, 329 P.3d 849 (Utah App. 2014).	**Property Damage:** $233,600. U.C.A. § 63G-7-604(1)(c). **Personal Injury:** $583,900. U.C.A. § 63G-7-604(1)(a). $2 million aggregate limit for single occurrence. U.C.A. § 63G-7-604(1)(d).

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VERMONT	Common law immunity. Vermont Supreme court has held municipalities liable only where act is *proprietary* in nature and not *governmental*. *Hillerby v. Town of Colchester*, 706 A.2d 446 (Vt. 1997); *Morway v. Trombley,* 789 A.2d 965 (Vt. 2001).	Notice of a claim against a town for insufficiency of a bridge or culvert must be within twenty (20) days. Vt. Stat. Ann. 19, § 987. Personal injury and property claims must be filed within three (3) years. Vt. Stat. Ann. 12, §§ 512(4) and 512(5). Small claims ($2,000 or less) actions against the State must be filed within 18 months. Vt. Stat. Ann. Tit. §32-932.	Municipality liable for *proprietary* function, but not for *governmental* function. One of the few states that retains the governmental-proprietary distinction. **Governmental Function:** A weighing of the type of public policy considerations that would warrant shielding from liability.	Construction and maintenance of streets and sidewalks are *governmental* functions protected by doctrine of sovereign immunity, but maintenance of sewers is a *proprietary* function not protected. *Dugan v. City of Burlington*, 375 A.2d 991 (Vt. 1977). Municipal employee liable for operation of motor vehicle because of general duty to keep proper lookout and operate vehicle in safe manner. *Morway v. Trombly*, 789 A.2d 965 (Vt. 2001).	Damages against a town for insufficiency of bridge or culvert is $75,000 or the limits of liability insurance, whichever is greater. Vt. Stat. Ann. 19, § 985. A municipality's sovereign immunity to the extent of its insurance coverage. Vt. Stat. Ann. 29, § 1403.
VIRGINIA	Doctrine of sovereign immunity has not lost its vitality in Virginia. Va. St. § 8.01-195.3; *Messina v. Burden*, 321 S.E.2d 657 (Va. 1984).	Notice of claim must be given within six (6) months of accrual. Va. St. § 8.01-195.3.	Municipal corporations are immune from liability when performing *governmental* functions but are not when exercising *proprietary* functions. *Niese v. City of Alexandria,* 564 S.E.2d 127 (Va. 2002); *T Jean Moreau & Assocs. v. Health Ctr. Comm'n*, 720 S.E.2d 105 (Va. 2012). Liable only for gross negligence in operation of pols, parks, playgrounds. Va. St. § 15.2-1809.	*Counties* viewed as "political subdivisions" of Commonwealth and entitled to same immunity. *Mann v. Arlington County Bd.*, 98 S.E.2d 515 (Va. 1957) (no governmental-proprietary distinction). Cities receive reduced immunity. May be liable if *proprietary* function, immune if *governmental* function. *Hoggard v. City of Richmond*, 200 S.E. 610 (Va. 1939).	No caps for local government. Va. St. § 8.01-195.3.

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WASHINGTON	**Actions Against Political Subdivisions, Municipal and Quasi-Municipal Corporations**. R.C.W.A. §§ 4.96.010 to 50 (1967). "Local governmental entity" means a county, city, town, special district, municipal corporation.	Notice of claim on standard form must be presented to appointed agent of local government within applicable statute of limitations. R.C.W.A. § 4.96.020. Suit can be filed sixty (60) days after filing of Standard Notice of Claim Form.	Local governmental entities liable for both *governmental* and *proprietary* acts to the same extent as if they were a person. R.C.W.A. § 4.96.010(1).	No liability for *discretionary* functions (planning or operational level). R.C.W.A. § 4.96.010(2). *Evangelical United Brethren Church of Adna v. State*, 407 P.2d 440 (Wash. 1965).	None
WEST VIRGINIA	**The Governmental Tort Claims and Insurance Reform Act.** W. Va. Code § 29- 12A-1, *et seq.* (applies only to political subdivisions, not the State) Political subdivision employee has *qualified* immunity. Governmental immunity laws are confusing with patchwork of inconsistent holdings. *W. Virginia Dep't of Health & Human Res. v. Payne*, 746 S.E.2d 554 (W.Va. 2013).	Two (2) years after the cause of action arose or after the injury, death or loss was discovered or reasonably should've been discovered, whichever last occurs or within any applicable shorter period of time. W. Va. Code §29-12A-6.	Political subdivisions absolutely immune from policy-making acts and have qualified immunity for *discretionary* acts that do not violate clearly established rights and laws. Political subdivisions liable for certain types of claims: (1) Operation of motor vehicle; (2) Maintenance of public property; and (3) Negligent maintenance of roads, sidewalks, bridges, sewers and aqueducts. W. Va. Code §29-12A-4(3).	2-Step Process (1) Court identifies whether the nature of the act policy-making acts (immune) or *discretionary governmental* functions (Step 2). (2) If act is *discretionary*, court determines if plaintiff's statutory or constitutional rights violated. If not, State is immune. An insurance policy may waive defense of immunity. *W. Virginia Reg'l Jail & Corr. Facility Auth. v. A.B.*, 766 S.E.2d 751 (W. Va. 2014). For list of acts for which immune see §29-12A-5.	No limit on economic damages. Non-economic damages limited to $500,000 per occurrence. W. Va. Code §29-12A-6. Complaint must include a demand for a judgment for the damages that the judge in a nonjury trial or the jury in a jury trial finds that the complainant is entitled to be awarded but shall not specify in the demand any monetary amount for damages sought. W. Va. Code §29-12A-6(a).

STATE	LEGAL AUTHORITY	NOTICE DEADLINES	CLAIMS/ACTIONS ALLOWED	COMMENTS/EXCEPTIONS	DAMAGE CAPS
WISCONSIN	**Claims Against Government Bodies or Officers, Agents or Employees**. Wis. Stat. §§ 893.80 to 893.83 (1987). Local agencies and their employees are generally immune from liability. Wis. Stat. § 893.80(4). Governmental entities are required to indemnify their employees for suits related to acts committed within the scope of their employment. Wis. Stat. § 895.46. Therefore, it is possible for a plaintiff to indirectly recover damages from a government entity by filing suit directly against an officer or employee.	Notice of Claim served on proper agency must be made within 120 days of date of occurrence. Actual notice exception. Wis. Stat. § 893.80 Normal Statute of Limitations for property damage is six (6) years, but suit against government agency must be filed within three (3) years from date notice is given. Wis. Stat. § 893.80.	Public officer or employee immune for *discretionary* acts. *Barillari v. City of Milwaukee,* 533 N.W.2d 759 (Wis. 1995); Wis. Stat. § 893.80 (Wisconsin's Discretionary Immunity Statute). Wisconsin Safe Place Statute (Wis. Stat. § 101.11). Employer must provide safe workplace. Conflict as to whether it imposes a *ministerial* or *discretionary* duty. Municipality liable for operation of motor vehicle. Wis. Stat. § 345.05. Whether Safe Place Statute (§ 101.11) requires employers to furnish safe place of employment, whether it imposes a ministerial or discretionary duty on a government employer is not clear but is likely discretionary. *Spencer v. County of Brown,* 573 N.W.2d 222 (Wis. App. 1997). But see *Anderson v. City of Milwaukee,* 544 N.W.2d 630 (Wis. App. 1996).	Three exceptions to general rule of immunity: (1) Wilful and wanton activity; (2) *Ministerial* task; and (3) Employee aware of known and compelling danger that creates duty to act. *Barillari*, supra. *Ministerial* task occurs when act is certain, absolute, and imperative, involving merely the performance of a specific task which the law imposes, prescribes and defines. If act involves judgment or discretion, then there is immunity because it is a discretionary and not a ministerial act. *Bauder v. Delavan-Darien Sch. Dist.*, 558 N.W.2d 881 (Wis. App. 1996) (decision of teacher to move class indoors was discretionary). Sewer system design and construction is *discretionary*. Sewer system maintenance is a *ministerial*. *Menick v. City of Menasha,* 547 N.W.2d 778 (Wis. App. 1996). No action can be maintained for accumulation of snow or ice on any bridge or highway unless the accumulation existed for three weeks. Wis. Stat. § 893.83.	Claim against municipality for negligent use of a municipal motor vehicle limited to $250,000. No punitives. Wis. Stat. § 345.05(3). Actions involving government vehicles exempt from registration under Motor Vehicle Code limited to $50,000. Wis. Stat. § 345.05(1)(bm). Limit of $50,000 against any volunteer fire company, political corporation, government subdivision or agency. Wis. Stat. § 893.80(3). Damages against a volunteer fire company are limited to $25,000. Wis. Stat. § 893.80(1)(b)(3).

STATE	LEGAL AUTHORITY	NOTICE DEADLINES	CLAIMS/ACTIONS ALLOWED	COMMENTS/EXCEPTIONS	DAMAGE CAPS
WYOMING	**Wyoming Governmental Claims Act (WGCA).** Wyo. Stat. §§ 1-39-101 to 121 (1979). Except as provided in the WGCA, a governmental entity (*i.e.,* state or local government body) is granted immunity from liability for any tort. Wyo. Stat. § 1-39-104.	Written Notice of Claim must be presented with two (2) years. Wyo. Stat. § 1-39-113. Compliance with Notice of Claim requirement no longer has to be alleged in complaint. *Brown v. City of Casper*, 248 P.3d 1136 (Wyo. 2011). Suit must be filed within one (1) year of written Notice of Claim. Wyo. Stat. § 1-39-114.	Claims allowed for: (1) Operating motor vehicle: Wyo. Stat. § 1-39-105. (2) Operating building or park: Wyo. Stat. § 1-39-106. (3) Airport: Wyo. Stat. § 1-39-107 (4) Operating public utilities (gas, electric, water, etc.) and ground transportation: Wyo. Stat. § 1-39-108. (5) Operating hospital: Wyo. Stat. § 1-39-109. (6) Torts of police: Wyo. Stat. § 1-39-112.	The WGCA abolishes all judicially created categories such as governmental or *proprietary* functions and *discretionary* or *ministerial* acts previously used by the courts to determine immunity or liability. Exclusions from the waiver of liability are listed at W.S. 1-39-120: (1) defect in plan or design of bridge, culvert, highway, road, street, sidewalk or parking lot; (2) failure to construct or reconstruct bridge, culvert, etc.; and (3) maintenance, including maintenance to compensate for weather conditions, of any bridge, culvert, etc.	**Personal Injury:** $250,000 per person; $500,000 per occurrence. Governmental entity can purchase liability insurance in which case limits are extended to match limits of policy. Wyo. Stat. § 1-39-118. **Property Damage:** Claim must be less than $500. Wyo. Stat. § 1-39-118(f). **Health Care:** Claims against providers limited to $1 million regardless of claims or claimants. Wyo. Stat. § 1-39-1109(b).

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2010 WL 5030129
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UNPUBLISHED OPINION. CHECK COURT RULES BEFORE CITING.

This decision was reviewed by West editorial staff and not assigned editorial enhancements.

Superior Court of Connecticut,
Judicial District of New Haven.

Zaida JIMINEZ
v.
AMERICAN STEAK HOUSE, LLC et al.

No. CV106001715S.
|
Nov. 15, 2010.

Opinion

JACK W. FISCHER, Judge.

***1** The defendant, American Steak House, LLC, has moved to strike the second count of the complaint of the plaintiff, Zaida Jiminez. "The proper method to challenge the legal sufficiency of a complaint is to make a motion to strike ..." *Gulack v. Gulack,* 30 Conn.App. 305, 309, 620 A.2d 181 (1993). "The role of the trial court [in ruling on a motion to strike] [is] to examine the [complaint], construed in favor of the [plaintiff], to determine whether the [plaintiff has] stated a legally sufficient cause of action." (Internal quotation marks omitted.) *Dodd v. Middlesex Mutual Assurance Co.,* 242 Conn. 375, 378, 698 A.2d 859 (1997). "In ruling on a motion to strike, the court is limited to the facts alleged in the complaint." (Internal quotation marks omitted.) *Faulkner v. United Technologies Corp.,* 240 Conn. 576, 580, 693 A.2d 293 (1997).

In examining the complaint, in the first count, the plaintiff alleges the following facts. The defendant owned property located at 1170 East Main Street in Meriden (the property). On June 8, 2008, the plaintiff entered the property and was sitting at a booth. As she went to get up, she was caught on the bottom of her foot by a detached piece of the booth and fell, causing her serious and painful injuries. "The fall was due to the negligence and carelessness of the [d]efendant." [1]

[1] In particular, the plaintiff alleges that the defendant: (1) knew or should have known that a portion of the booth was detached causing a hazardous condition and yet failed to repair the booth; (2) knew or should have known that a portion of the booth was detached causing a hazardous condition and yet failed to post any warnings; and (3) failed to maintain their booths in a safe manner when they knew or should have known that patrons would be utilizing the booths.

As a result, the plaintiff suffered injuries. In the second count, the plaintiff realleges the previous facts and injuries but alleges that "[t]he [p]laintiff's fall and injury was due to the [wilful], wanton and reckless conduct of the [d]efendant." [2]

2 In particular, the plaintiff alleges that the defendant: (1) consciously chose not to inspect the premises; (2) made a wilful and conscious decision not to warn customers of the dangerous condition created by the damaged booth due to the burden and/or costs associated with presenting such a warning; and (3) made a wilful and conscious decision not to repair the booth due to the burden and/or costs associated with that repair.

The defendant has moved to strike on the grounds that the "plaintiff cannot transform a negligence count into a count for wilful and wanton misconduct merely by appending a string of adjectives to allegations that clearly sound in negligence." *Brown v. Branford,* 12 Conn.App. 106, 110, 529 A.2d 743 (1987). This court agrees.

"Recklessness requires a conscious choice of a course of action either with knowledge of the serious danger to others involved in it or with knowledge of facts which would disclose this danger to any reasonable man, and the actor must recognize that his conduct involves a risk substantially greater ... than that which is necessary to make his conduct negligent." (Internal quotation marks omitted.) *Bishop v. Kelly,* 206 Conn. 608, 614-15, 539 A.2d 108 (1988).

It is clear that the plaintiff has not alleged sufficient facts to state a cause of action for recklessness and "does not allege conduct by the defendant that involves any highly unreasonable conduct involving an extreme departure from ordinary care." *Zublena v. Carrozzo,* Superior Court, judicial district of Litchfield, Docket No. CV 01 0084267 (May 20, 2002, Cremins, J.). "This court does not accept the premise that a decision to avoid costs by tolerating the status quo is ipso facto a reckless decision, such that an injury resulting from it must be practically considered intentional." *Lopez-Morales v. Fourteenth Club of Willimantic, Inc.,* Superior Court, judicial district of Windham, Docket No. CV 06 5000851 (April 30, 2007, Roland, J.) (43 Conn. L. Rptr. 351, 352-53).

***2** The motion to strike is granted.

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2015 WL 671691

UNPUBLISHED OPINION. CHECK COURT RULES BEFORE CITING.

Superior Court of Connecticut,
Judicial District of Stamford–Norwalk.

M & L CONSTRUCTION, INC.
v.
TOWN of DARIEN.

No. FSTCV136022914S.
|
Feb. 2, 2015.

Attorneys and Law Firms

Harlow Adams & Friedman PC, Milford, Michelson Kane Royster & Barger, Hartford, for M & L Construction, Inc.

Curtis Brinckerhoff & Barrett, Stamford, for Town of Darien.

POVODATOR, J.

Nature of the Proceeding

***1** This is one of four cases arising from a single public works project in the town of Darien, presenting the same legal issue. In each case, the defendant town has moved to strike the complaint and in each case, the plaintiff subcontractor on the project has advanced similar arguments in resisting the motion to strike.

The common fact pattern is that the Town of Darien [1] entered into a contract with Dappreio Construction & Development, LLC (hereafter, Dappreio) for a board of education project; Dappreio, in turn, engaged the services of a number of subcontractors to perform portions of that work. The plaintiffs in these cases are subcontractors on that project.

1 In two cases, the town and board of education have been named as defendants; in two cases, only the town has been named. For convenience, the court will refer to the town as the operative defendant.

As established by General Statutes § 49–41, Dappreio was required to, and did, provide to defendant town a payment bond, specifically a bond on which Great Northern Bonding Co., Ltd. (hereafter, Great Northern) was the surety.

After performing services and providing materials for this project, the plaintiff subcontractors sought payment from Dappreio and failing to obtain satisfaction, turned to Great Northern. To varying degrees, the subcontractors have pressed their claims against the bonding company, allegedly to no avail. All of the plaintiff subcontractors commenced their actions against the town, claiming that the town was liable under General Statutes § 49–42, arguing that the inability to obtain any benefit from the bond issued by Great Northern was the equivalent of a failure of the town to obtain a bond, that the town's failure to verify the bona fides of the bonding company which later failed to honor its obligations under the bond was the equivalent of a failure to obtain a bond as required by the statute. In effect, and explicitly stated in the various complaints, the subcontractors claim that, based on such a course of events, the bond issued by Great Northern was fraudulent, a sham, or otherwise the equivalent of nonexistent. [2]

2 In 3 of the actions, Dappreio and Great Northern also are parties. In each of those actions, they have been defaulted for failing to appear.

The town has taken the position that it satisfied the statutory obligations to require and obtain a surety bond from Dappreio, and that it is not responsible under these statutes for the failure of Great Northern to honor its obligations under the bond as issued; that the 20–20 hindsight perspective based on the failure of Great Northern to honor its obligations is not the equivalent of a failure to obtain a bond.

Discussion

A. Legal analysis

The issue before the court can be formulated in a number of ways. To what extent is a town receiving/accepting a bond under § 49–41 required to investigate the solvency or creditworthiness of the issuer of the bond? If a town fails to investigate the solvency or creditworthiness of the issuer of the bond, and the issuer fails to honor the bond or becomes insolvent or otherwise incapable of honoring the bond, does the town become effectively a guarantor of that bond? Does the town have a duty to subcontractors to ensure that any issuer of a payment bond, under this statutory scheme, has some minimum level of creditworthiness or solvency, and if so, what is that standard?

***2** The obvious starting point is the statutory scheme. The relevant portions of § 49–41 provide:

> (a) Each contract exceeding one hundred thousand dollars in amount for the construction, alteration or repair of any public building or public work of ... a municipality shall include a provision that the person to perform the contract shall furnish to the ... municipality on or before the award date, a bond in the amount of the contract which shall be binding upon the award of the contract to that person, with a surety or sureties satisfactory to the officer awarding the contract, for the protection of persons supplying labor or materials in the prosecution of the work provided for in the contract for the use of each such person, provided no such bond shall be required to be furnished (1) in relation to any general bid in which the total estimated cost of labor and materials under the contract with respect to which such general bid is submitted is less than one hundred thousand dollars; (2) in relation to any sub-bid in which the total estimated cost of labor and materials under the contract with respect to which such sub-bid is submitted is less than one hundred thousand dollars; or (3) in relation to any general bid or sub-bid submitted by a consultant, as defined in section 4b–55. Any such bond furnished shall have as principal the name of the person awarded the contract.
>
> * * * *
>
> (c) No contract for the construction, alteration or repair of any public building or public work of ... a municipality that requires a person to supply the ... municipality with a bond may include a provision that requires the person to obtain the bond from a specific surety, agent, broker or producer. No contracting officer may require that a bond be obtained from a specific surety, agent, broker or producer.
>
> (d) In the event that any political subdivision of the state enters into a contract described in subsection (a) of this section and fails to obtain delivery from the contractor of the bond required by this section, any person who has not been paid by the contractor for labor or materials supplied in the performance of work under the contract shall have the same legal right of action against such political subdivision of the state as such person would have had against a surety under the provisions of section 49–42 ...

The outcome of this dispute is likely to be draconian for the "loser." Defendant town likely paid most or all of the contract price to the general contractor, [3] and if it ultimately is held liable pursuant to § 49–42, it will be compelled to "double pay" to the extent of the value of services and materials provided by the subcontractors bringing suit. Unlike a property owner under a mechanic's lien where the limit of liability generally is the contract price less good faith payments made to the general contractor; see, General Statutes § 49–36; the liability of the town would not be subject to such an explicit statutory limitation. Under the current statutes, despite (likely) having paid the general contractor, the town would then be liable in an alternate capacity, i.e. as a surrogate for the surety who issued the arguably-worthless payment bond, with statutory liability for additional payments relating to goods and services covered by the contract with the general contractor, presumably encompassed by the contract price already paid.

[3] If the town had not paid most or all of the contract price to Dappreio, then there would be little or no concern about double-payment—instead of paying, or holding money in reserve to pay Dappreio, the town could pay the subcontractors directly, using these lawsuits as vehicles, subject to whatever protection might be deemed appropriate should Dappreio try to come back into the picture.

***3** On the other hand, if the town is not required to step in, then the subcontractors may have no available recourse, notwithstanding any possible if not likely reliance on the existence of a payment bond, and the mandate of § 49–41 (and remedy supposedly available under § 49–42). Their compensation would be limited to the extent they may have been paid (in part) while work was proceeding, or their success in "chasing" either the contractor who had hired them or the surety that has failed to make good on its obligations.

As the parties have discussed in their submissions, the relevant statutory language was added as a result of a Supreme Court decision in which it was determined that, under the prior version of the statute, the failure of a municipality to ensure that a general contractor provided a required payment bond for a project could not be the basis for claimed municipal liability. The mechanic's lien statutes, and the payment bond requirement applicable to municipalities due to their immunity from mechanic's liens, were enacted in recognition of the lack of any common-law remedy available to a subcontractor for nonpayment by the general contractor. Absent a statutory remedy for the nonfeasance of the municipality, the court could not create one. Therefore, the

General Assembly stepped in and enacted the current version of § 49–41—specifically adding subsection (d), requiring the municipality to step into the role of payment bond surety if no payment bond had been provided.

Ultimately, this comes down to a matter of statutory interpretation. The starting point for statutory interpretation is General Statutes § 1–2z:

> The meaning of a statute shall, in the first instance, be ascertained from the text of the statute itself and its relationship to other statutes. If, after examining such text and considering such relationship, the meaning of such text is plain and unambiguous and does not yield absurd or unworkable results, extratextual evidence of the meaning of the statute shall not be considered.

As reported appellate decisions make clear, it is relatively rare that a statute is sufficiently "plain and unambiguous" as not to require consideration of any extratextual evidence to discern its meaning and application, particularly when considering a particular factual context. See, e.g., *Conservation Commission of The Town of Fairfield v. Red 11, LLC,* 135 Conn.App. 765, 777–78 (2012) (although a party who "brought an action" usually connotes a party who commenced an action, in some contexts the term can refer to a party who prosecuted the action without regard to lack of participation in commencement).

In a narrow and literal sense (the extent to which it might be argued that the statute is plain and unambiguous), the language of the statute supports the position of the town. There is no claim that the contract with Dappreio did not include a provision requiring it to provide a payment bond as required by § 49–41(a). There also is no claim that Dappreio did not furnish to the town a document that purported to be a payment bond, identifying Great Northern as the surety. To the contrary, each complaint asserts that the bonding company did furnish a bond (or purported bond) to the town. To varying degrees, the plaintiffs have pursued their claims against Dappreio and/or Great Northern without success, before turning to defendant town.

***4** To varying degrees, the plaintiffs go on to assert that there was less than meets the eye when it came to the $2.4 Million bond that had been provided to the town by Dappreio. Thus, in the 12th count of the Enterprise complaint, it alleges that the town "failed to obtain delivery from Dappreio of a valid, legitimate, satisfactory payment bond as required by ... § 49–41(a)" and that the town "knew or should have known that the bond was invalid and would not be subject to good faith claims by claimants such as Enterprise" and that the town "knew or should have known that Great Northern is a fraudulent and valueless bonding company." (¶¶ 18–20 of 12th Count). (The complaint filed by Oscars is substantially the same, as to these allegations.)

In its complaint, C.S.P. alleges that the town "failed to obtain delivery from [Dappreio] of a valid, legitimate, satisfactory payment bond as required under C.G.S. § 49–41(a)" and that the town "before accepting the Payment Bond ... should have undertaken routine due diligence to verify that the surety furnishing the Payment Bond was a viable entity and, had the Town done so, it would or should have known that the Payment Bond was invalid, and would not be sufficient to respond to good faith claims such as the one asserted by CSP" and further, had the town undertaken such due diligence, "it would or should have known that [Great Northern] is a fraudulent and insufficiently capitalized entity, that could not have possibly fulfilled its obligations under the Payment Bond." (¶¶ 18–20 of the 7th count.)

The complaint filed by M & L asserts that the town had a "duty to obtain a valid, proper and enforceable payment bond to protect the Plaintiff's right to payment" and it breached the obligation "by failing to obtain a valid, proper or enforceable payment bond." (¶¶ 20–21 of the 1st count.)

In sum, then, plaintiffs are claiming that the town had an obligation to ensure that the bonding company was sufficiently solvent that there would be meaningful recourse in the event that the general contractor failed to pay the subcontractors and inferentially should have assured itself that Great Northern would not improperly refuse to pay valid claims. Plaintiffs claim that this was a duty owed to them by the town, under the statutes, and that there is liability arising from the claimed lack of a solvent bond/bonding company to honor their respective claims.

There is no textual support for the contention that the town was obligated to undertake a due-diligence investigation of the bonding company acting as surety on the payment bond

provided to Dappreio. When deemed necessary, the General Assembly can and has added qualifying language to statutes, reflecting some minimum standard for eligibility, e.g., § 10–279 and the reference to lowest responsible qualified bidder. See, also, Chapter 58a relating to prequalification of bidders for certain projects.

The prequalification program is instructive, as its scope largely overlaps the scope of § 49–41—governmental construction projects. [4] Under the prequalification program, there is no review of the suitability of any bonding company; to the contrary, input *from* the bonding company (presumably focusing on the performance bond) is required in evaluating the ability of a contractor to undertake additional business (§ 4a–100(d)). As with a payment bond, there is an incentive for an aggressive (or unscrupulous) bonding company to overestimate the ability of a contractor to undertake additional work, as that is likely to lead to additional premiums (and risk).

4 There is nothing in any complaint indicating that this project came within the scope of the prequalification program/statutes. General Statutes § 4b–91(a) would require such compliance if there were any state funds being used.

***5** This affords a convenient segue to a more general contextual factor. Most government projects require competitive bidding, with a mandate that the project be awarded to the lowest responsible bidder or lowest qualified (or prequalified) bidder or some similar directive. There is no shortage of humor [5] and litigation premised on that requirement—while theoretically necessary for responsible decisions relating to publicly-funded expenditures, the process inherently is biased towards finding the lowest cost source for *all* materials and services required by a project. If Company A—a fiscally conservative company—charges $5,000 for a bond, and Company B—a more aggressive, risk-taking company—charges $4,000 for a similar bond, which company will a general contractor probably select for a governmental project where being the lowest bidder is the *sine qua non* of getting the contract?

5 See, e.g., www.cartoonstock.com/cartoonview.asp?catref=awhn61

Even a seemingly reputable—and well-known—financial security company in the business of issuing bonds is not immune from the risk of failure. In recent years, AIG required a $100+ Billion bailout—arguably because it was too big to fail (or to be allowed to fail). Less headline-worthy but no less significant, insurance companies continue to encounter financial difficulties, presumably because they are not too big to fail (or to be allowed to fail). In recent months, the court has dealt with cases where defendants were represented by counsel retained through insurance provided by Indemnity Insurance Corporation, which company was put into "rehabilitation" followed by an effort by state officials to liquidate the company, resulting in, at best, cases being stayed, and in some instances, counsel withdrawing their appearances based on not being paid with no prospect of being paid in the future, with the insureds being left to fend for themselves. [6]

6 See, e.g., # 116.00 in *Buzzalino v. Turtle Cove of Stamford,* FSTCV126014754S for recitation of such scenario.

A subcontractor as well as the municipality is (would be) able to do a due-diligence inquiry, if desired. To be sure, the municipality has somewhat more leverage—it can refuse to award a contract based on perceived inadequacy of a payment bond effectively forcing the contractor to switch sureties, whereas the only practical recourse of a subcontractor is to decline to accept the work, as the contractor is unlikely to increase his/her costs (for a bonding company) in order to satisfy a subcontractor.

The statute requires "a bond in the amount of the contract which shall be binding upon the award of the contract to that person, *with a surety or sureties satisfactory to the officer awarding the contract ...*" (emphasis added). The use of the term "satisfactory" can only mean that there is to be some level of discretion and judgment on the part of "the officer awarding the contract."

The impact of discretion on municipal tort liability is governed by General Statutes § 52–557n. At least some courts have indicated that in matters pertaining to contract, judicial deference to discretion may or should be broader; see, e.g., *Vollemans v. Wallingford,* J.D. New Haven at Meriden, No. CV 03 0283760 (Jun. 26, 2007) 2007 Ct.Sup. 11350. Specifically discussing municipal employment contracts, the court observed:

> ***6** Vollemans contends that since Wallingford acted in its proprietary capacity, it must be held to the standard

> of a private business in interpreting his claim of promissory estoppel. The court disagrees. Where a municipality acts in a proprietary capacity, there is an exception to governmental immunity for tortious conduct. Vollemans, however, has not offered any authority to suggest that this exception to governmental immunity extends to the issue of government contracts in general, and particularly to contracts for government employment. The proprietary capacity exception to municipal immunity from tort liability serves to protect the public at large from injury and to provide a more level playing field when a governmental entity engages in a business traditionally operated by private economic concerns. Although this latter public policy may be furthered by extending the proprietary capacity exception to matters concerning contracts, the analogy to contracts of government employment is incomplete and inconsistent with the existing law of municipalities.

(The court went on to observe that in connection with claims of promissory estoppel directed to a municipal entity, the standards are stricter than when dealing with nongovernmental actors.)

Section 1–2z provides no real practical assistance with respect to interpretation and application of statutes in situations presumably not anticipated by the General Assembly. The General Assembly attempted to fix a problem that was identified in *O & G Industries, Inc. v. New Milford,* 229 Conn. 303 (1994)—the lack of any remedy under the then-existing provisions of § 49–41 should a municipality fail to comply with the statutory directive to require and obtain a payment bond in connection with a municipal construction project. It fixed the problem, at least insofar as it was made clear that there would be consequences for a municipality's failure to obtain a payment bond in connection with projects to which § 49–41 is applicable. Section 49–41(d), as currently in effect, provides that the municipality can find itself filling the shoes of the missing surety, so as to provide recourse to an otherwise remediless subcontractor. [7] There is nothing in the statutory language, legislative history, or prior appellate decisions that suggest that the municipality might or should be responsible for the financial solvency or responsibility of a bonding company, after a bond is provided.

7 "(d) In the event that any political subdivision of the state enters into a contract described in subsection (a) of this section and fails to obtain delivery from the contractor of the bond required by this section, any person who has not been paid by the contractor for labor or materials supplied in the performance of work under the contract shall have the same legal right of action against such political subdivision of the state as such person would have had against a surety under the provisions of section 49–42 ..."

The court recognizes that under a scenario such as is present here, the choice is between leaving the subcontractors without any remedy, and forcing the municipality to be treated as the equivalent of a guarantor of the surety for the payment bond and therefore potentially paying twice for the work done by claimant subcontractors. As noted earlier, unlike the situation with respect to mechanic's liens (for which § 49–41 is intended to provide a governmental analog), there is no cap on liability based on the amount paid to the general contractor in good faith; cf. § 49–36.

***7** Mechanic's liens and the statutory analog for mechanic's liens with respect to governmental contracts are in derogation of the common law. While there may not be a mandate for strict compliance, substantial compliance with statutory requirements is necessary, for one seeking the benefit of such statutes. *Dent & Pflugner, P.A. v.. Kalivas,* 8 Conn.App. 512, 516 (1986).

Defendant's attempted reliance on *State v. Lombardo Brothers Mason Contractors, Inc.,* 307 Conn. 412 (2012), while helpful, is somewhat overstated. Although the governmental immunity afforded to municipalities, as political subdivisions of the state, sometimes is termed "sovereign immunity," the immunity actually available to municipalities is distinct from—and more limited than—the immunity provided to the state under the same label. Thus, the immunity available to the state is sometimes characterized as an immunity from suit and not just liability, resulting in the availability of an immediate appeal from a denial of a motion to dismiss asserting sovereign immunity,

whereas a denial of an immunity claim by a municipality generally must await entry of judgment in order to be tested on appeal; *Edgerton v. Clinton,* 311 Conn. 217, 227 n. 9 (2014). Cases discussing one form of immunity may be of use in discussing the other, but care must be taken not to incorporate principles without due regard for the potentially-significant differences. (Note that § 49–41(d) explicitly distinguishes between municipalities and the state, with respect to consequences of failing to obtain a payment bond.)

In sum, the statute provides no guidance as to how to address this situation, except to the extent that there may be an implicit ability to claim an abuse of discretion premised on the language "satisfactory to the officer awarding the contract" (but without any legal framework for imposing liability). The statute provides no hint as to how to resolve the tension between the need to afford protection to subcontractors on public projects where mechanic's liens are unavailable, against the need to recognize the potentially onerous burden of treating a municipality as a potential guarantor of the solvency—or general responsibility—of a surety on a payment bond under § 49–41, with the corollary recognition of the deference typically given to the discretion and judgment of municipal officials. Ultimately, the court is left with the fact that the town facially complied with the statute; it required a payment bond and the contractor provided a payment bond. The court believes that there is no basis for imposing a greater responsibility, i.e. investigate the creditworthiness and other indicia of suitability of a surety/bonding company.

Mild confirmation of this interpretation comes from § 49–41(c). That provision prohibits any control or steering relating to a contractor's choice of provider of a bond—neither the contract nor the contracting officer may require "that a bond be obtained from a specific surety, agent, broker or producer." This language does not necessarily or absolutely preclude the rejection of a particular surety or producer, but the greater the involvement of the contracting officer (effectively, town) in determining who is and who is not suitable, the closer the contracting officer (effectively, town) comes to prohibited involvement in determining the identity of the "specific surety, agent, broker or producer" for the bond.

***8** Further confirmation comes from the legislative history as recited by defendant in its brief and by the Supreme Court in *O & G,* 229 Conn. 308, recognizing that the 1941 amendments to the applicable statute were "intended to relieve the state or municipality from any obligation to a subcontractor to ensure the posting of a bond." See, also, footnote 8, elaborating on the quoted language, noting that the changes to the statute also eliminated the role of the contracting agent (officer) in the processing of claims against a payment bond—the subcontractor now was required to initiate an action on the bond rather than having the town do so after paying the claim. The post-*O & G* amendments restored a role of the municipality in "[ensuring] the posting of a bond," but did not require any further involvement beyond ensuring that a bond be required by the contract and actually be provided. It did not create a role for the town in processing claims or guaranteeing that they would be honored.

Plaintiffs rely on *Kammer Asphalt v. East China Township Schools,* 443 Mich. 176 (1993), for the proposition that the unavailability of a viable surety, despite submission of what appeared to be a payment bond, can result in municipal liability. Two critical and interrelated elements of *Kammer* are not present here: in that case, the bonding company "did not exist"[8] and the defendant apparently had actual knowledge of that fact substantially before attempting to terminate the contractor's role in the project ("(the contractor] ignored defendant's subsequent demands for valid bonds"; 443 Mich. 180; see, also, 443 Mich. 187, n. 26).[9] If the bonding company did not exist, then the "bond" actually delivered to the governmental entity was not a bond; it was a piece of paper with legally-meaningless words printed on it. Here, there is no alleged equivalent circumstances; nothing objectively determinable in a manner analogous to actual existence.

8 The decision also noted that there was a statutory requirement that the bonding company be licensed by (registered with) the state, 443 Mich. 182, 184; a non-existent entity, of course, could not be licensed/registered. Plaintiffs have not claimed that Great Northern failed to comply with such an objective requirement for status as surety on the relevant project.

9 "[T]he record clearly reflects that the City was aware that contractor Smith did not have a bond and chose to allow him to continue under his contract. It is entirely reasonable for a subcontractor to assume that the governmental agency, in executing a construction contract ... will follow the law and require the general contractor to provide a bond.

> However, if such governmental agency should choose not to require the bond, then it should also not be heard to claim that a subcontractor's only remedy for nonpayment is against the general contractor on the bond it did not require and that it knew he did not have." Although this was presented in the context of a discussion of unjust enrichment, it bears on this discussion as well.

The court also rejects the reliance on General Statutes § 49–43 [10] and the reliance of the Michigan Supreme Court in *Kammer* on similar statutory language in that state. This court interprets the language as an evidentiary/procedural enactment rather than a substantive one—it provides a clear path to proof at trial. That is mildly confirmed by a clause in the statute that indicates the generality of the statute. The statute applies not only to a party making a claim under the bond, but also to a party being sued under the bond—the statutory procedure is available "to any person making application therefore who submits an affidavit that he has supplied labor or materials for the work and payment therefore has not been made *or that he is being sued on the bond* ..." (emphasis added). [11] Its stated purpose is to allow a copy of the bond, as provided under the statute, to constitute "prima facie evidence of the contents, execution and delivery of the original." It does not constitute an endorsement of the financial status or other aspects of the responsibility of the bonding company. Indeed, what is the alternative—if § 49–43 is to be treated as an endorsement of the bona fides of a bonding company, can (should!) a municipality refuse to issue a copy under the statute if it has any doubts about the financial responsibility of the bonding company?

10 "Each agency of the state or of any subdivision thereof, in charge of the construction, alteration or repair of any public building or public work of the state or of any subdivision thereof, shall furnish, to any person making application therefore who submits an affidavit that he has supplied labor or materials for the work and payment therefore has not been made or that he is being sued on the bond, a copy of the bond and the contract for which it was given, certified by the administrative head of the agency, which copy shall be prima facie evidence of the contents, execution and delivery of the original. Applicants shall pay for those certified copies such fees as are provided in section 1–212."

11 In the context of a situation where the bonding company did not exist, the court in *Kammer* also identified a statutory requirement that "the bond be executed by a validly licensed company" (443 Mich. 184), a requirement not present in Connecticut.

***9** The court in *Kammer* may have been influenced by the fact that the bond in question was "issued" by a company that did not exist and seemingly was known to the governmental entity not to exist. [12] Under such circumstances, it may well be perceived to be intentionally misleading to act as if the "bond" provided were actually a bond. There is no analogous justification here for taking a document certification process with evidentiary implications, and treating it as a substantive admission and/or assumption of liability.

12 Additionally, under Michigan law, the governmental entity plays a role in establishing the amount of the bond, which is only required to be at least 25% of the contract price. In the absence of a bond, liability of the governmental entity would be limited to that 25% figure. See, 443 Mich. 185, n. 25, citing MCL 129.203. Thus, under Michigan law, a municipality has some ability to protect itself and limit its liability, but at the expense of subcontractors whose recourse would be correspondingly limited.

To the extent that *Kammer* at least partially relied on actual knowledge, this court agrees that there should be liability under § 49–41(d)—there is a difference in kind, and not just degree, if a governmental entity turns a blind eye towards a known substantial problem with a bonding company. It would need to be more than innuendo but actual known objective facts; non-existence of the company, as seems to have been the situation in *Kammer,* would be an obvious example. A known history of defaults (plural, intentional) might also suffice. Disciplinary action by regulatory agencies premised on failures to honor surety obligations also likely would suffice. There is nothing of that nature alleged to be present here.

On many levels, then, *Kammer* is perceived to be distinguishable, including the statutory framework applicable and limitation on liability for the municipality if a bond were deemed absent; see footnote 12. The court does not find it to be persuasive in the circumstances present here, except to the extent that it relied upon known and/or readily discernible objective facts relating to the status of the bonding company,

and not some obligation to undertake a due-diligence inquiry before accepting any payment bond. Perhaps simplistically: once it was recognized that the company did not exist, any detailed analysis was unnecessary, as a "bond" supposedly issued by a non-existing entity inherently could not be a bond, and the only value of further discussion, especially as to the governmental entity's conduct, would be germane to other theories of liability being addressed, e.g., unjust enrichment.

To the extent that the plaintiffs do or might rely on the town's alleged disregard of known facts—and the complaints contain allegations that could be so read—as discussed more fully below, the court believes such a scenario would cross a line (however imprecise), into a realm where there could be no deference to discretion as to whether a bond or bonding company/surety is "satisfactory." If, as in *Kammer,* the company did not exist (or perhaps had not complied with registration/licensing requirements), it could be argued that, as a matter of law, a bond from such a company could not be "satisfactory." As to a need for due diligence—a claimed duty to investigate financial background and other factors that might relate to suitability as a surety—the court does not find a statutory basis for imposing such an obligation.

B. Application of Legal Principles

***10** At this juncture, the court must assemble and attempt to apply a variety of legal principles, principles that to some extent point in conflicting directions (in this case). The court is required to construe the complaint in a manner favorable to the non-moving party, but the court also is required to read the complaint realistically and practically, not technically. The court also must keep in mind the adage that "[i]t is an abiding principle of jurisprudence that common sense does not take flight when one enters a courtroom." *American National Fire Insurance Co. v. Schuss,* 221 Conn. 768, 778 (1992).

On a more technical level, the court recognizes that, pursuant to Practice Book § 10–39(a), a motion to strike is intended to test "(1) the legal sufficiency of the allegations of any complaint, counterclaim or cross claim, or of any one or more counts thereof, to state a claim upon which relief can be granted; or ..." This court does not believe it to be appropriate to use a motion to strike to test the sufficiency of individual specifications of negligence, but if a single count were to contain more than one theory of liability or cause of action, a motion to strike might be appropriate to test the legal sufficiency of one such cause or theory. Thus, while in many circumstances a request to revise might be an appropriate vehicle for "setting up" a motion to strike—by asking the plaintiff to isolate theories or causes of action—the court does not believe that it is necessarily constrained by the lack of such preliminary pleading practice. [13]

13 By way of example: if in a motor vehicle personal injury action, a plaintiff combined statutory and common-law recklessness into a single count, and there were no allegations relating to violations of the statutory predicates for invoking § 14–295, would the court be barred from considering an attempt to strike the statutory recklessness claim solely because it had not been set forth in a separate count? It would be better practice to separate the claims, and the court might decline to take action, but the issue is whether it would be *permissible* to address the matter on the merits. See, Practice Book § 1–8. ("The design of these rules being to facilitate business and advance justice, they will be interpreted liberally in any case where it shall be manifest that a strict adherence to them will work surprise or injustice").

The gist of the claims asserted by plaintiffs is that defendant had an obligation to investigate the appropriateness of the surety for the payment bond, couched in part in terms of a due-diligence requirement. According to plaintiffs, had defendant done so, it would have discovered that Great Northern was not a reputable bonding company and could not be relied upon to honor any obligations it may have undertaken.

So framed, the court has rejected that theory as a basis for liability under § 49–41 et seq. The court does not interpret § 49–41 as creating an affirmative duty for a governmental entity to investigate and do a background check on a surety for a payment bond. However, plaintiffs have invoked the somewhat formulaic recitation that the town knew or should have known of the problems surrounding Great Northern. In certain contexts, such as premises liability, that recitation satisfies the requirement for notice—actual or constructive, where either may suffice. In this context, the only role that notice might have—actual notice—is that it could negate the minimum standards implicit in a requirement that the "surety or sureties [be] satisfactory to the officer awarding the contract." Whatever level of discretion there may be, if there is actual knowledge that a surety is likely to refuse to honor its obligations or is otherwise known to be unreliable or insolvent, it plausibly could be argued that a rational

officer awarding a contract could/should/would not deem such a surety "satisfactory" and that it would be an abuse of discretion if not an abdication of responsibility to characterize such a surety as "satisfactory." Similarly, as previously noted, if the company had an inherent status-based flaw—e.g., did not exist, or had failed to obtain a required license—then again, it could be argued that such a company, as a matter of law, could not be "satisfactory." None of the plaintiffs have alleged any facts that might invoke any such basis for challenging the acceptance of the bond in this case.

***11** From a different perspective: the failure to do a background check or due diligence is essentially negligence, subject to characterization as nonfeasance. Acting in disregard of known facts can be characterized as misfeasance or even malfeasance, arguably rising to the level of intentional or reckless conduct. See, e.g., *Pane v. Danbury,* 267 Conn. 669, 685 (2004), discussing functional equivalence (for most purposes) of recklessness, malicious misconduct and intentional misconduct. If it were known in *Kammer* that the surety did not exist (as appears to have been the case), it would not be difficult to characterize acceptance of a bond naming the non-existent entity as surety, as reckless or intentional misconduct. [14] Conversely, it would be, at least arguably, an unsupportable understatement to characterize it simply as negligence.

14 As observed earlier, the fact that the company did not exist and/or the fact that the company was not licensed/registered seemingly would preclude, as a matter of law, a bond from such company being deemed "satisfactory." Further, a bond from a non-existent company would not be a bond in any sense; it would be a piece of paper with ink/toner on it.

Our courts have recognized that there is a "wide difference between negligence and a reckless disregard of the rights or safety of others," *Di Teresi v. Stamford Health System, Inc.,* 142 Conn .App. 72, 91 (2013), a difference in kind rather than a mere continuum of severity. To the extent that plaintiffs rely on actual and disregarded knowledge, the court believes that there is a difference in kind here, as compared to a claim of a failure to investigate and engage in a due-diligence inquiry as to the bona fides of the surety.

It is at this point that common sense and practicality come into conflict with legal formalities and technicalities. As noted earlier, the invocation of knew-or-should-have-known might have been formulaic, but it also might have been intentional and intended to be taken at face value. The should-have-known component clearly invokes the claimed failure to discover the true nature of the surety, and that is the aspect clearly being emphasized. The court has no way of knowing whether there is intended to be a good faith assertion of the actual knowledge component as well.

The discussion above explains why the court rejects the claim of liability predicated on the failure to investigate or undertake due diligence. The court does not reject the concept that the town might be liable if it acted with disregard of actual knowledge that Great Northern was insolvent or otherwise not likely to honor its obligations (or, as in *Kammer,* that the company did not even exist)—but the court cannot determine on the current record whether any plaintiff is making a good faith assertion of that nature (or whether the language suggesting such an approach was included somewhat reflexively).

It would not be appropriate for the court to assume that none of the plaintiffs intends to pursue a claim—in good faith—that the town had actual knowledge of the inappropriateness of Great Northern (and chose to disregard it), so it therefore would be inappropriate to strike any complete count or action against the town. It would be form over substance, however, to allow an action to continue if the only claim seriously intended to be pursued were based on the due diligence concept without any claim of actual knowledge. See, Practice Book § 1–8. Analogizing to negligence vs. recklessness, the court believes the best approach is to strike all claims based on negligence (failure to investigate, etc.) while leaving untouched the statutory claims to the extent that they are based on intentional/reckless disregard of known information (including, if appropriate, acceptance of a bond from a company that could not legally issue such a bond in Connecticut, e.g., due to nonexistence).

***12** This approach allows any plaintiff who wishes to do so, to continue to pursue the claim of intentional/reckless violation of the statute (while providing a sharper focus on the issues relating to potential liability). If any plaintiff does not wish to pursue a claim under the statute predicated on intentional/reckless disregard of known information, e.g., because a good faith assertion along those lines cannot be made, the court will entertain a motion for reconsideration premised on the court's misapprehension of the intent of that plaintiff—striking the entire count or complaint based on the "clarification" that that plaintiff only intended to pursue a claim based on the town's failure to investigate the suitability

of the surety. While this approach is perhaps unorthodox, it has the potential to avoid unnecessarily prolonged litigation, and is consistent with the spirit of Practice Book § 1–8.

C. The Contract Claim

The one differentiating issue among the claims asserted by plaintiffs, and addressed in the motions to strike, is that plaintiff C.S.P., Inc. in FST–CV–146021449–S, has also asserted a breach of contract claim, premised on status as a third-party beneficiary. Defendant town has moved to strike that claim as well.

The court agrees that the contractual claim is legally insufficient. The contract claim does not allege any promise or obligation of the town that was breached, that could support a claim—there is nothing that is identified that the town promised to do that it did not do. Mere status as a party to a contract is insufficient to hold a party liable to a third-party beneficiary—the party must have had an obligation that it did not fulfill.

In an apparent attempt to allege "something" that might be perceived as addressing this requirement, ¶ 9 of the eighth count states:

> The Town [and the contractor] have breached their obligations under the Payment Bond by failing to procure a legitimate bond upon which third parties, such as C.S.P., could assert claims for sums owed for materials and labor furnished to the Project.

That is circular at best: the town breached its obligation under the bond by failing to procure a (legitimate) bond—the same bond as was allegedly breached. That is in addition to the "problem" that the bond is not intended to create any contractual obligation on the part of the town (it is the satisfaction of a statutory responsibility), such that any contractual obligation under the bond itself would not be an obligation of the town. Which, in turn, leads back to the very premise of § 49–41 and its history—there is no right or obligation of the town to a subcontractor except as may exist under that statutory scheme.

The statutory scheme does not create any direct relationship between a governmental entity and a subcontractor except in the case of a failure to obtain a bond, but that is a statutory relationship with an explicit (and presumptively exclusive) remedy. Ultimately, it distills to the same claim as rejected above—that the town, in some sense, is or can be effectively a guarantor of the surety's obligation, which in turn is to act (effectively) as a guarantor of the obligation of the contractor to pay its subcontractors, in the event that the surety fails to honor its obligation under a bond provided to the town. Plaintiff has not identified anything in the statutes or anything in the bond-relationship created by a bond provided in compliance (purported compliance) with § 49–41 that would allow a subcontractor to pursue a breach of contract claim against the town under the theory that the bond creates an obligation to have an adequate bond.

Conclusion

***13** In amending § 49–41 in response to *O & G,* the General Assembly was responding to a particular flaw it perceived—the absence of any consequences should a municipality fail to require and obtain a payment bond for a construction project. There is nothing to suggest that there was an intent to impose any broader liability on municipalities, nothing to suggest municipalities needed to investigate the practices and creditworthiness of bonding companies. There is nothing to suggest that the legislature intended to make a governmental entity a surety for the surety in connection with payments to subcontractors on governmental construction projects.

The unavoidable consequence of any decision even suggesting possible liability in a situation such as this is obvious—municipalities will only accept top-rated bonding companies as sureties (or companies perceived as too-big-to-fail), hoping that reliance on a professional rating agency should be sufficient to satisfy a claimed obligation of due-diligence. (Or are municipalities to be required to undertake their own audits of the financial situation of a proposed bonding company?) That can only lead to reduced competition/choice and higher costs. That also brings the situation closer to one threatening the goal of § 49–41(c)—the more limited the options available to a contractor, the closer the situation approaches one in which the town is steering or directing the use of a particular bonding company (or a highly-constrained choice of bonding company).

The court grants the motion with respect to claims that the failure to undertake an investigation of the surety and thereby learn of the surety's unsuitability constitutes a legally-sufficient claimed violation of the directive of § 49–41 that the contract with Dappreio "include a provision that the person to perform the contract shall furnish to the state or municipality on or before the award date, a bond in the amount of the contract which shall be binding upon the award of the contract to that person, with a surety or sureties satisfactory to the officer awarding the contract, for the protection of persons supplying labor or materials in the prosecution of the work provided for in the contract for the use of each such person ..." or that it constitutes a "[failure] to obtain delivery from the contractor of the bond required by this section."

Subject to revisiting the fine-tuning attempted by this decision should any plaintiff wish to make clear that it has no intention of pursuing a claim premised on actual knowledge, the motion is denied with respect to any claim that the town had actual knowledge of the financial irresponsibility or other unsuitability of Great Northern as a surety (or that, as a matter of law, it could not be deemed a satisfactory surety) but nonetheless deemed it satisfactory for purposes of the payment bond at issue.

With respect to the eighth count of C.S.P.'s complaint in FSTCV146021449S, alleging a breach of contract, the motion to strike is granted.

All Citations

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UNPUBLISHED OPINION. CHECK COURT RULES BEFORE CITING.

Superior Court of Connecticut,
Judicial District of Stamford–Norwalk.

Maria PERA et al.
v.
YOUNG MEN'S CHRISTIAN ASSOCIATION OF GREENWICH et al.

No. FSTCV116008362S.
|
July 29, 2011.

Opinion

DAVID R. TOBIN, J.

***1** This case arises out of injuries which plaintiff, Maria Pera, claims to have sustained on February 23, 2009 when she slipped and fell on ice in a parking lot leased and controlled by defendant, Young Men's Christian Association of Greenwich ("YMCA"). Also named as defendants are The Saint Roch's Church Corporation of Greenwich, the owner of the parking lot leased by the YMCA, and Longo Contracting (sic), a contractor alleged to have undertaken to keep the parking lot free of ice and snow. Maria Pera's husband, Adrian Pera, who asserts a loss of consortium claim, is also a plaintiff.

Presently before the court is a motion to strike filed by the YMCA (# 119.00). In that motion the YMCA seeks to strike the fourth count of the plaintiffs' amended complaint dated May 19, 2011. The first count of the amended complaint alleges that the YMCA was negligent: 1) in permitting the parking lot to be covered with ice and snow; 2) in not properly removing ice and snow from the parking lot; 3) in not adequately providing for the removal of ice and snow; 4) in failing to inspect; 5) failing to place abrasive materials on the parking lot; 6) failing to provide adequate warning of the dangerous conditions.

The fourth count of the amended complaint alleges that the YMCA was reckless in consciously choosing not: 1) to inspect the parking lot; or 2) to remove snow from the parking lot; or 3) to sand or salt the parking lot because of the costs of time and/or money associated with such inspections, removals or sanding/salting. The fourth count also alleges that the YMCA refused to put up warning signs although it knew of the hazards associated with weather conditions. There is no explicit claim that the failure to post warning signs was motivated by the defendant's desire to save the costs of time and/or money.

In its motion to strike the YMCA claims that the fourth count of the plaintiffs' amended complaint fails to state a claim for recklessness. The plaintiffs have filed an opposition to the motion to strike claiming that they have adequately pled a claim for common-law negligence. The motion to strike and the opposition thereto were heard on short calendar on July 25, 2011.

DISCUSSION

"The purpose of a motion to strike is to contest ... the legal sufficiency of the allegations of any [pleading] ... to state a claim upon which relief can be granted." (Internal quotation marks omitted.) *Fort Trumbull Conservancy, LLC v. Alves,* 262 Conn. 480, 498 (2003). "A party wanting to contest the legal sufficiency of a special defense may do so by filing a motion to strike." *Barasso v. Rear Still Hill Road, LLC,* 64 Conn.App. 9, 13 (2001). In ruling on a motion to strike, the court must accept as true the facts alleged in the special defenses and construe them in the manner most favorable to sustaining their legal sufficiency. *Connecticut National Bank v. Douglas,* 221 Conn. 530, 536, 606 A.2d 684 (1992). "[I]f facts provable in the complaint would support a cause of action, the motion to strike must be denied ... It is fundamental that in determining the sufficiency of a complaint challenged by [an opposing party's] motion to strike, all well-pleaded facts and those facts necessarily implied from the allegations are taken as admitted ... Indeed, pleadings must be construed broadly and realistically, rather than narrowly and technically." (Internal quotation marks omitted.) *Violano v. Fernandez,* 280 Conn. 310, 318 (2006).

***2** "Recklessness requires a conscious choice of a course of action either with knowledge of the serious danger to others involved in it or with knowledge of facts which would disclose this danger to any reasonable man, and the actor must recognize that his conduct involves a risk substantially greater ... than that which is necessary to make his conduct negligent ... More recently, [the Connecticut Supreme Court has] described recklessness as a state of consciousness with reference to the consequences of one's acts ... It is more than negligence, more than gross negligence ... The state of mind amounting to recklessness may be inferred from conduct. But, in order to infer it, there must be something more than a failure to exercise a reasonable degree of watchfulness to avoid danger to others or to take reasonable precautions to avoid injury to them ... Wanton misconduct is reckless misconduct ... It is such conduct as indicates a reckless disregard of the just rights or safety of others or of the consequences of the action ." (Citations omitted; internal quotation marks omitted.) *Matthiessen v. Vanech,* 266 Conn. 822, 832–33 (2003). "[N]egligence and wilful and wanton misconduct are separate and distinct causes of action ... There is a wide difference between negligence and a reckless disregard of the rights or safety of others, and a complaint should employ language explicit enough to clearly inform the court and opposing counsel that reckless misconduct is relied on." (Internal quotation marks omitted.) *Angiolillo v. Buckmiller,* 102 Conn.App. 697, 705, cert. denied, 284 Conn. 927, (2007).

In the present case, the plaintiffs allege in count one of their amended complaint that the YMCA was, in essence, negligent in failing to adequately remove the snow and ice in a parking lot that it controlled. In count four, which attempts to state a cause of action in recklessness, the plaintiffs paraphrase most of the allegations of count one and add that the defendant knew that the presence of ice and snow in the parking lot posed a hazard to pedestrians yet consciously chose not to inspect the lot nor to remove the snow and ice due to associated burdens and costs. The issue presented by this motion to strike is whether passive behavior such as the failure to take action to remove snow and ice after a weather event can rise to the level of reckless behavior.

"Merely using the term 'recklessness' to describe conduct previously alleged as negligence is insufficient as a matter of law." *Angiolillo v. Buckmiller, supra,* 102 Conn.App. at 705 (affirming a trial court's rendering of summary judgment on a common-law recklessness claim in a wrongful burial case where "[t]he plaintiffs, in the complaint, simply incorporated their allegations of negligence and labeled the conduct recklessness"). "A specific allegation setting out the conduct that is claimed to be reckless or wanton must be made." *Dumond v. Denehy,* 145 Conn. 88, 91, 139 A.2d 58 (1958).

***3** "It is ... of no legal consequence if identical facts are alleged to support separate causes of action providing allegations are sufficient to support both claims." *Long v. Taranto,* Superior Court, judicial district of Stamford–Norwalk at Stamford, Docket No. CV 06 5002986 (December 23, 2008, Pavia, J.) "[S]imilarities between the allegations of the negligence and common-law recklessness count are not necessarily grounds for the claim to be stricken. A cause of action of common-law recklessness may be sufficient to withstand a motion to strike even though the allegations of reckless conduct are also alleged as a basis of negligent conduct in another count sounding in negligence. The similarity of allegations does not necessarily render one cause of action invalid." (Internal quotation marks omitted.) *Sullivan v.. Sullivan,* Superior Court, judicial district of Fairfield, Docket No. CV 10 6005919 (September 24, 2010, Gilardi, J.). In *Sullivan,* the recklessness count incorporated by reference

the allegations of a negligence count but added an allegation that "[t]he plaintiff was injured as a result of the defendant's recklessness in that the defendant was aware that opening the bedroom door would cause the closet door to abruptly shut." *Id.* Judge Gilardi denied the motion to strike the recklessness count. *Id.*

See also, *Alvarado v. Pavani Painting, LLC,* Superior Court, judicial district of Fairfield, Docket No. CV 09 5027658 (July 1, 2010, Tobin, J.), in which this court granted a motion to strike a recklessness count, which merely stated that the defendant recklessly violated unspecified state and federal statutes. However, the court observed that "is of the opinion that a plaintiff can describe the same conduct as merely negligent in one count and in the same complaint allege that the same conduct was reckless."

"[S]imilarity [of allegations] cannot be the sole focus. To so consider would often require a plaintiff to ratchet down the negligence claim in order to render more visible the conceptual space between the counts. Focus must instead primarily rest on the recklessness-sufficiency of those counts." *Maleski v. Connecticut Light & Power Co.,* Superior Court, judicial district of Waterbury, Docket No. CV 08 5008285 (March 26, 2009, Brunetti, J.). In *Maleski,* the plaintiff alleged "that the defendants knowingly failed to shut off the power to the portions of the high voltage lines during the periods of time it had agreed to with reckless disregard for the rights and/or safety of the plaintiff, and with conscious knowledge of the fact that the injuries and substantial risk would be posed upon the public including serious personal injury incurred by the plaintiff." *Id.* In a well considered opinion, Judge Brunetti denied the motion to strike the recklessness count because "[a]n allegation of the defendants' knowledge of a hazard and the failure to take steps to prevent danger is sufficient to state a cause of action in recklessness." *Id.* Other Connecticut courts have used this reasoning to deny motions to strike recklessness counts. *Haley v. Connecticut Light & Power,* Superior Court, judicial district of Ansonia–Milford, Docket No. CV 059027 (November 9, 1999, Nadeau, J.) (intentional opening of a dam with conscious knowledge that injuries to the public would result); *Cruz v. Tosado,* Superior Court, judicial district of Hartford–New Britain at Hartford, Docket No. CV 93 0531845 (May 22, 1995, Hennessey, J.) (14 Conn. L. Rptr. 272, 274–75) (property owner's alleged failure to ensure that children are not exposed to dangerous lead after being notified by an official that the property contained toxic levels of lead paint).

***4** Similarly, in *Henderson v. CVS Pharmacy,* Superior Court, judicial district of New Haven, Docket No. CV 08 5017128 (July 31, 2008, Cosgrove, J.) (46 Conn. L. Rptr. 25, 26), where the plaintiffs alleged that a drugstore provided the wrong prescription medication, the complaint was brought in both negligence and recklessness, among other causes of action. In deciding on the motion to strike the recklessness count, Judge Cosgrove noted that "the plaintiffs have distinguished their allegation by stating that the defendants not only provided the wrong medication and instructions, but also 'did nothing to check the accuracy of the medications provided [to the plaintiffs] despite their clear professional responsibility to do so, and the grave danger posed to [the plaintiffs] by virtue of dispensing the wrong medications and instructions.' " *Id.,* at 27. Because "[t]he plaintiffs have not merely appended adjectives to their negligence complaint" and because "[t]he plaintiffs' allegations of recklessness are not merely allegations of negligence suffused with legal conclusions," "it [was] apparent that there [were] alleged facts contained within the second count that could allow for a finding that the defendants acted recklessly." *Id.* This, in turn, led Judge Cosgrove to deny the motion to strike. *Id.*

However, in *Zublena v. Carrozzo,* Superior Court, judicial district of Litchfield, Docket No. CV 01 0084267 (May 20, 2002, Cremins, J.), a case with some similarities to the present action, the plaintiff claimed that she was injured due to the accumulation of ice and snow in a parking lot. She alleged "that the defendants had actual notice and knowledge of the condition of the parking lot due to tenants' complaints" but "were reckless in their described conduct, refused to inspect the premises, refused to respond to the tenants' complaints and intentionally and wantonly made no provisions for snow and ice removal in spite of the knowledge that the extreme weather conditions and accumulation of ice and snow made the use of the parking lot hazardous and life and limb threatening to anyone using said parking lot." *Zublena v. Carrozzo, supra.* The defendants moved to strike for failure to state a cause of action in recklessness. *Id.* The court granted the motion, ruling that "[t]he plaintiff does not allege conduct by the defendants that involves any highly unreasonable conduct involving an extreme departure from ordinary care." *Id.*

The *Zublena* decision was cited in *Lopez–Morales v. Fourteenth Club of Willimantic, Inc.,* Superior Court, judicial district of Windham, Docket No. CV 06 5000851 (April 30, 2007, Boland, J.) (43 Conn. L. Rptr. 351, 352), another action for recklessness involving injuries attributed to snow and ice in a parking lot. Count one stated a cause of action in negligence, while in count two of his complaint, the *Lopez–Morales* plaintiff alleged that the defendant was reckless because "[the defendant] knew of the dangerous condition of the accumulation of ice and snow of the parking lot but decided not to correct the condition or make reasonable efforts to insure the safety of patrons because of economic concerns as to the cost of such efforts." *Lopez–Morales v. Fourteenth Club of Willimantic, Inc., supra,* 43 Conn. L. Rptr. at 352. The court interpreted the core allegation of the second count as a claim "that a defendant who knowingly determines on the basis of a cost/benefit analysis to allow ice or snow to remain where accumulated, or which fails to properly inspect so as to make that determination in light of all the facts, thereby acts not merely negligently but recklessly, willfully, or wantonly." *Id.* The court proceeded to strike the second count, *id.,* at 353, reasoning as follows:

> ***5** "This court does not accept the premise that a decision to avoid costs by tolerating the status quo is ipso facto a reckless decision, such that an injury resulting from it must be practically considered intentional. Every decision preceding alterations to the condition of property, whether arising from ice and snow buildup or correction of any other defect, requires the owner to weigh what is needed, how quickly, at what cost, and what risks may be tolerable until the repairs are made. Presumably, if the allegations of the first count in this case are proven, the conclusion will be reached that defendant erred in its calculations here and is answerable to plaintiff in damages. Such an error in judgment however, standing alone, is not the equivalent of conduct evidencing such an extreme departure from ordinary care as warrants it being characterized as reckless, wanton, or willful. This is not to say that no property owner, at any time, may be accused of recklessness after failing to remove accumulated ice and snow, but merely to say that what plaintiff has alleged in the second count of his complaint is insufficient to do so." *Id.,* at 352–53.

In a recent case, a plaintiff alleged that she was injured by a defect in a restaurant booth. *Jiminez v. American Steak House, LLC,* Superior Court, judicial district of New Haven at Meriden, Docket No. CV 10 6001715 (November 15, 2010, Fischer, J.). In addition to pleading a count of negligence, the plaintiff alleged that the defendant was reckless because it "(1) consciously chose not to inspect the premises; (2) made a wilful and conscious decision not to warn customers of the dangerous condition created by the damaged booth due to the burden and/or costs associated with presenting such a warning; and (3) made a wilful and conscious decision not to repair the booth due to the burden and/or costs associated with that repair." *Id.* Citing *Zublena* and *Lopez–Morales,* the court granted the motion to strike the recklessness count. *Id.*

Accordingly, while courts in Connecticut have ruled that in certain instances the failure to act can serve as a basis for a recklessness claim, see, e.g., *Maleski v. Connecticut Light & Power Co., supra,* Superior Court, Docket No. CV 08 5008285, they have stricken recklessness counts that merely allege passive behavior such as failure to clear snow and ice.

As explained in the decisions cited above, the plaintiffs' claim that the defendant's alleged passivity was due to the desire to avoid costs does not turn a negligence action into a recklessness action. Therefore, the court concludes that the plaintiffs have not stated a cause of action in recklessness against the YMCA in the fourth count of their amended complaint. Accordingly, the court grants the motion to strike the fourth count.

All Citations

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